

# Electricity Act 2003 — §126/§135 Jurisprudence Map

Aggregation pass over 30 case-records · combined from provision\_index · issue\_matrix · citation\_graph

Each case shows (IK/GH) links. IK = the judgment on Indian Kanoon; on a specific holding it jumps to and highlights the exact passage (text-fragment link — works in Chrome/Edge/Safari; Firefox opens the judgment at the top). GH = the record JSON on GitHub, anchored to that holding's lines. The paragraph number of each holding is shown as a tag, e.g. para 23 .

30 records

22 provisions

10 issue-nodes

92 authority citations

26 in-corpus edges

🔑 **Backbone finding:** the single most load-bearing authority across the corpus is **Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill (2012) 2 SCC 108** — now recorded in-corpus as **SC-002 (IK/GH)**, cited by 15 of 30 records ({'followed': 10, 'referred': 4, 'distinguished': 1}). It anchors the §126-vs-§135 line and several neighbouring nodes.

## 1 · Provision index — every holding grouped by section, oldest – newest, with the statutory version applied

▼ s.2 — 2 holdings (2 ratio) · 2 cases post-2007

| Case           | Yr   | as                                          | issue-node                            | type  | holding (para · text)                                                                                                                                                                                                                                    |
|----------------|------|---------------------------------------------|---------------------------------------|-------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| SC-008 (IK/GH) | 2007 | Consumer Protection Act s.2(o) post-2007    | jurisdiction-145-154                  | ratio | para 8 Supply of electric energy by the utility falls within 'service' as defined in Section 2(o) of the Consumer Protection Act, 1986.                                                                                                                  |
| SC-006 (IK/GH) | 2021 | Consumer Protection Act s.2(1)(g) post-2007 | jurisdiction-145-154 · assessment-126 | ratio | para 21 Raising a short-assessment demand to correct the licensee's own wrong multiply-factor is not a 'deficiency in service' where the consumer does not dispute the short-billing; it is 'escaped assessment', so the consumer fora cannot interfere. |

▼ s.43 — 2 holdings (2 ratio) · 1 cases post-2007

| Case           | Yr   | as             | issue-node           | type  | holding (para · text)                                                                                                                                                                                                                       |
|----------------|------|----------------|----------------------|-------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| SC-005 (IK/GH) | 2023 | s.43 post-2007 | jurisdiction-145-154 | ratio | para 328(a) The duty to supply electricity under Section 43 is not absolute; it is subject to the charges and compliances stipulated by the electric utilities as part of the application for supply.                                       |
| SC-005 (IK/GH) | 2023 | s.43 post-2007 | jurisdiction-145-154 | ratio | para 328(b) The Section 43 duty is owed with respect to the owner/occupier of the premises (a consumer-premises synergy); one becomes a consumer only with respect to the particular premises for which electricity is sought and provided. |

▼ s.49 — 2 holdings (2 ratio) · 2 cases pre-2003

| Case                                           | Yr   | as                                                            | issue-node                                                | type         | holding (para · text)                                                                                                                                                                                                                                 |
|------------------------------------------------|------|---------------------------------------------------------------|-----------------------------------------------------------|--------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-013</a> <a href="#">(IK/GH)</a> | 2002 | Tariff Clause 16.9 / s.49 Supply Act <a href="#">pre-2003</a> | <a href="#">natural-justice</a> · <a href="#">126v135</a> | <b>ratio</b> | <a href="#">para 21</a> Consumption beyond the sanctioned load without the Board's consent amounts to theft or malpractice; the statutory tariff (Clause 16.9) empowers the Board to disconnect supply without notice on detecting unauthorised load. |
| <a href="#">SC-005</a> <a href="#">(IK/GH)</a> | 2023 | s.49 (1948 Act) <a href="#">pre-2003</a>                      | <a href="#">jurisdiction-145-154</a>                      | <b>ratio</b> | <a href="#">para 328(d)</a> A Condition of Supply requiring a new owner to clear the previous owner's electricity arrears as a precondition to supply has a statutory character.                                                                      |

▼ **s.50** — 2 holdings (2 ratio) · 1 cases [post-2007](#)

| Case                                           | Yr   | as                                     | issue-node                           | type         | holding (para · text)                                                                                                                                                                                                                                          |
|------------------------------------------------|------|----------------------------------------|--------------------------------------|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">SC-005</a> <a href="#">(IK/GH)</a> | 2023 | s.50 <a href="#">post-2007</a>         | <a href="#">jurisdiction-145-154</a> | <b>ratio</b> | <a href="#">para 328(e)</a> The State Commission's regulatory powers under Section 50 are wide enough to stipulate conditions for recovery of a previous owner's electricity arrears from new or subsequent owners.                                            |
| <a href="#">SC-005</a> <a href="#">(IK/GH)</a> | 2023 | s.181 / s.50 <a href="#">post-2007</a> | <a href="#">jurisdiction-145-154</a> | <b>ratio</b> | <a href="#">para 328(g)</a> The rule-making power under Section 181 read with Section 50 is wide enough to enable the regulatory commission to provide for a statutory CHARGE on the premises, even absent a charge-creating provision in the plenary statute. |

▼ **s.56** — 11 holdings (11 ratio) · 4 cases [post-2007](#)

| Case                                           | Yr   | as                                | issue-node                    | type         | holding (para · text)                                                                                                                                                                                                                                                                                                |
|------------------------------------------------|------|-----------------------------------|-------------------------------|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-003</a> <a href="#">(IK/GH)</a> | 2014 | s.56(2) <a href="#">post-2007</a> | <a href="#">limitation-56</a> | <b>ratio</b> | <a href="#">reasoning on issue 3</a> Electricity dues under a Section 126 assessment become 'first due' for Section 56(2) only when the final assessment is made — not on the date of detection or consumption; the two-year bar runs from the final assessment, so recovery initiated soon after it is within time. |
| <a href="#">SC-004</a> <a href="#">(IK/GH)</a> | 2020 | s.56(2) <a href="#">post-2007</a> | <a href="#">limitation-56</a> | <b>ratio</b> | <a href="#">para 6.6</a> Electricity charges become 'first due' under Section 56(2) only after the bill is issued to the consumer, even though the liability to pay arises on consumption; the obligation to pay arises when the bill quantifying the charges is issued.                                             |
| <a href="#">SC-004</a> <a href="#">(IK/GH)</a> | 2020 | s.56(1) <a href="#">post-2007</a> | <a href="#">limitation-56</a> | <b>ratio</b> | <a href="#">para 7.3</a> Section 56(1) confers a statutory right on the licensee to disconnect supply for non-payment; that right is subject to the two-year limitation in Section 56(2).                                                                                                                            |
| <a href="#">SC-004</a> <a href="#">(IK/GH)</a> | 2020 | s.56(2) <a href="#">post-2007</a> | <a href="#">limitation-56</a> | <b>ratio</b> | <a href="#">para 7.4</a> The two-year period runs from when the charges became first due; Section 56(2) restricts the licensee's right to disconnect for non-payment unless the sum has been shown continuously as recoverable arrears in the bills for the past period.                                             |
| <a href="#">SC-004</a> <a href="#">(IK/GH)</a> | 2020 | s.56(2) <a href="#">post-2007</a> | <a href="#">limitation-56</a> | <b>ratio</b> | <a href="#">para 8</a> Section 56(2) bars ONLY the coercive remedy of disconnection after two years; it does not preclude the licensee from raising a supplementary demand or pursuing other modes of recovery for it.                                                                                               |
| <a href="#">SC-004</a> <a href="#">(IK/GH)</a> | 2020 | s.56(2) <a href="#">post-2007</a> | <a href="#">limitation-56</a> | <b>ratio</b> | <a href="#">para 9</a> In case of a bona fide mistake, the licensee may raise an additional/supplementary demand after the two-year period, but cannot take recourse to disconnection to recover it (limitation for a suit running from discovery of the mistake under Section 17(1)(c) of the Limitation Act).      |
| <a href="#">SC-006</a> <a href="#">(IK/GH)</a> | 2021 | s.56(2) <a href="#">post-2007</a> | <a href="#">limitation-56</a> | <b>ratio</b> | <a href="#">para 15</a> The Section 56(2) bar is not merely on disconnection of supply but also on recovery; it operates on two distinct rights of the licensee — the right to recover and the right to disconnect.                                                                                                  |

| Case                           | Yr   | as                                                   | issue-node                                                           | type         | holding (para · text)                                                                                                                                                                                                                                                                                    |
|--------------------------------|------|------------------------------------------------------|----------------------------------------------------------------------|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">SC-006</a> (IK/GH) | 2021 | <a href="#">s.56(2)</a><br><a href="#">post-2007</a> | <a href="#">limitation-56</a>                                        | <b>ratio</b> | <a href="#">para 15</a> The second part of Section 56(2) is an exception to the general law of limitation, which normally bars only the remedy (through a court) and not the right — here it bars even the remedy of disconnection.                                                                      |
| <a href="#">SC-006</a> (IK/GH) | 2021 | <a href="#">s.56(1)</a><br><a href="#">post-2007</a> | <a href="#">limitation-56</a>                                        | <b>ratio</b> | <a href="#">para 25</a> Section 56 is keyed to a consumer's neglect to pay a charge; the licensee's own negligence causing short-billing, and its later rectification, is not covered by Section 56(1), so such a corrective claim may not attract the Section 56(2) 'no sum due from any consumer' bar. |
| <a href="#">SC-006</a> (IK/GH) | 2021 | <a href="#">s.56(2)</a><br><a href="#">post-2007</a> | <a href="#">limitation-56</a>                                        | <b>ratio</b> | <a href="#">para 26</a> The question of neglect to pay arises only after a demand is raised; if no bill is raised, limitation under Section 56(2) does not begin to run, and until it runs the bar on recovery/disconnection does not operate.                                                           |
| <a href="#">SC-005</a> (IK/GH) | 2023 | <a href="#">s.56</a><br><a href="#">post-2007</a>    | <a href="#">limitation-56</a> · <a href="#">jurisdiction-145-154</a> | <b>ratio</b> | <a href="#">para 328(h)</a> The power to initiate recovery proceedings by filing a suit against a defaulting consumer is independent of the power to disconnect supply as a means of recovery under Section 56.                                                                                          |

▼ **s.72** — 1 holdings (1 ratio) · 1 cases [pre-2007](#)

| Case                           | Yr   | as                                                                                       | issue-node                     | type         | holding (para · text)                                                                                                                                                                                                                                  |
|--------------------------------|------|------------------------------------------------------------------------------------------|--------------------------------|--------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-021</a> (IK/GH) | 2005 | <a href="#">s.126 / Contract Act</a><br><a href="#">s.72</a><br><a href="#">pre-2007</a> | <a href="#">assessment-126</a> | <b>ratio</b> | <a href="#">para 27</a> Money paid pursuant to an illegal assessment under the threat that supply would not be restored until payment is recoverable; allowing the Board to retain it would be unjust enrichment impermissible under the Contract Act. |

▼ **s.125** — 1 holdings (1 ratio) · 1 cases [post-2007](#)

| Case                           | Yr   | as                                                         | issue-node                 | type         | holding (para · text)                                                                                                                                                                                                                                                                                                                 |
|--------------------------------|------|------------------------------------------------------------|----------------------------|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-018</a> (IK/GH) | 2017 | <a href="#">s.127 / s.125</a><br><a href="#">post-2007</a> | <a href="#">appeal-127</a> | <b>ratio</b> | <a href="#">para 10</a> Section 125 (appeal to the Supreme Court from the Appellate Tribunal, Part XI) and Section 127 (appeal to the appellate authority from a Section 126 assessment, Part XII) are totally different and operate in different contexts; authority on Section 125 limitation does not govern a Section 127 appeal. |

▼ **s.126** — 70 holdings (66 ratio) · 23 cases [post-2007](#) [pre-2007](#)

| Case                           | Yr   | as                                                   | issue-node                                                       | type         | holding (para · text)                                                                                                                                                                                                                                                                                                                                                                                    |
|--------------------------------|------|------------------------------------------------------|------------------------------------------------------------------|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-021</a> (IK/GH) | 2005 | <a href="#">s.126</a><br><a href="#">pre-2007</a>    | <a href="#">assessment-126</a>                                   | <b>ratio</b> | <a href="#">para 16</a> From the commencement of the Electricity Act, 2003 (10.6.2003), a provisional assessment for unauthorised use must be made strictly in accordance with Section 126; an assessment made under the Board's old Terms & Conditions of Supply (Clause 22(J)) is not in accordance with Section 126 and is bad.                                                                       |
| <a href="#">HC-021</a> (IK/GH) | 2005 | <a href="#">s.126(1)</a><br><a href="#">pre-2007</a> | <a href="#">assessment-126</a> · <a href="#">natural-justice</a> | <b>ratio</b> | <a href="#">para 18</a> Section 126(1) requires the assessing officer to provisionally assess 'to the best of his judgment' on his own personal observation of the extent of unauthorised use; this quasi-judicial function cannot be fettered by a superior's guideline/office order — an assessment dictated by such a direction is the direction-giver's judgment, not the officer's, and is illegal. |
| <a href="#">HC-021</a> (IK/GH) | 2005 | <a href="#">s.126(1)</a><br><a href="#">pre-2007</a> | <a href="#">assessment-126</a>                                   | <b>ratio</b> | <a href="#">para 19</a> On the facts, the assessment was not the officer's judgment but the judgment of those who issued the 30.12.2003 guideline, and was                                                                                                                                                                                                                                               |

| Case                  | Yr   | as                                    | issue-node                            | type        | holding (para · text)                                                                                                                                                                                                                                                                                                                 |
|-----------------------|------|---------------------------------------|---------------------------------------|-------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                       |      |                                       |                                       |             | therefore not an impartial or legal assessment (evidenced by an absurd quantum ~6 times the consumer's highest average consumption).                                                                                                                                                                                                  |
| <b>HC-021</b> (IK/GH) | 2005 | s.126 / Contract Act s.72<br>pre-2007 | assessment-126                        | ratio       | <b>para 27</b> Money paid pursuant to an illegal assessment under the threat that supply would not be restored until payment is recoverable; allowing the Board to retain it would be unjust enrichment impermissible under the Contract Act.                                                                                         |
| <b>HC-008</b> (IK/GH) | 2006 | s.126(3)<br>pre-2007                  | natural-justice                       | ratio       | <b>para 11</b> An assessment for unauthorised use / DAE must be preceded by inspection and a reasonable hearing; the licensee is bound by the principles of natural justice (Section 126(3) read with Reg. 25(viii)).                                                                                                                 |
| <b>HC-008</b> (IK/GH) | 2006 | s.126<br>pre-2007                     | burden-proof · natural-justice        | ratio       | <b>para 12</b> A suspicion of unauthorised use / DAE must be corroborated by the consumer's consumption pattern; that corroboration is a precondition to the exercise of assessment jurisdiction, and where consumption exceeds ~75% of the assessed figure no action can be taken. A missing seal or broken glass alone will not do. |
| <b>HC-008</b> (IK/GH) | 2006 | s.126(3)<br>pre-2007                  | natural-justice                       | ratio       | <b>para 14</b> The show-cause notice must precisely and unambiguously state the allegations on which action is proposed; a notice that keeps the real basis (here, the consumption-pattern / two-shift-use finding) from the consumer fails the standard of fairness.                                                                 |
| <b>SC-008</b> (IK/GH) | 2007 | s.126<br>post-2007                    | assessment-126 · jurisdiction-145-154 | ratio       | <b>para 8</b> Assessment of the charge for unauthorised use, meter-tampering and calibration are technical matters; whether the beneficial consumer jurisdiction extends to such determinations (and to tortious acts like disconnection) is left open and remitted to the National Commission.                                       |
| <b>HC-006</b> (IK/GH) | 2008 | s.126<br>post-2007                    | 126v135                               | explanatory | <b>para 15</b> Section 126 excludes mens rea and fastens civil liability; unauthorised use of electricity is different from theft, which is a criminal offence under Section 135.                                                                                                                                                     |
| <b>HC-020</b> (IK/GH) | 2011 | s.126 / Reg. 8.1<br>post-2007         | assessment-126 · burden-proof         | ratio       | <b>para 183</b> The assessing officer has no jurisdiction to make a theft assessment unless he first establishes a case of theft against the person (para 8.1(b)(iv)); merely issuing a provisional assessment order does not establish theft.                                                                                        |
| <b>HC-020</b> (IK/GH) | 2011 | s.126<br>post-2007                    | burden-proof                          | ratio       | <b>para 195</b> Theft of electrical energy cannot be made out on mere presumption; it has to be established as required by para 8.1(b)(iv) of the Code.                                                                                                                                                                               |
| <b>HC-020</b> (IK/GH) | 2011 | s.126(1)<br>post-2007                 | assessment-126                        | ratio       | <b>para 181</b> A best-judgment assessment under Section 126 must be arrived at without bias and on a rational basis; the officer cannot take a 'short cut' by recording an evasive conclusion in the provisional assessment without discussing how the inference of unauthorised use/theft was reached.                              |
| <b>HC-020</b> (IK/GH) | 2011 | s.126(3) / Reg. 8.1<br>post-2007      | natural-justice                       | ratio       | <b>para 183</b> The law requires an opportunity of oral hearing to the consumer before final assessment; none was given here (no date was communicated for the consumer to answer the charges in person).                                                                                                                             |
| <b>HC-020</b> (IK/GH) | 2011 | s.126 / s.135<br>post-2007            | 126v135 · mensrea-135                 | explanatory | <b>para 72</b> Section 126 assessment may be made even on inspection of records where a person is found in unauthorised use, without attracting Section 135, because Section 135 contemplates                                                                                                                                         |

| Case           | Yr   | as                                        | issue-node                            | type        | holding (para · text)                                                                                                                                                                                                                                                                                                 |
|----------------|------|-------------------------------------------|---------------------------------------|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                |      |                                           |                                       |             | a positive act interfering with the recording of electricity supplied.                                                                                                                                                                                                                                                |
| SC-002 (IK/GH) | 2011 | s.126 / s.135<br>post-2007                | 126v135                               | ratio       | para 17 Sections 126 and 135 are distinct provisions that operate in different and distinct fields and have no commonality in law.                                                                                                                                                                                    |
| SC-002 (IK/GH) | 2011 | s.126 / s.135<br>post-2007                | 126v135 · mensrea-135                 | ratio       | para 16 Section 135 theft falls within criminal jurisprudence and mens rea is a relevant factor; Section 126 does not speak of any criminal intendment and is primarily a civil remedy without elements traceable to mens rea.                                                                                        |
| SC-002 (IK/GH) | 2011 | s.126<br>post-2007                        | assessment-126 · mensrea-135          | ratio       | para 17 'Unauthorised use of electricity' under Section 126 deals with cases of unauthorised use even in the absence of intention — distinct from dishonest abstraction under Section 135.                                                                                                                            |
| SC-002 (IK/GH) | 2011 | s.126<br>Explanation (b)(iv)<br>post-2007 | assessment-126                        | ratio       | para 58 (conclusion 2) 'Unauthorised use of electricity' is an expression of wider connotation to be construed purposively; excess-load consumption beyond the connected load falls under Explanation (b)(iv) to Section 126 (besides violating the Regulations and agreement).                                       |
| SC-002 (IK/GH) | 2011 | s.126 / s.127<br>post-2007                | appeal-127 · provisional-final        | ratio       | para 58 (conclusion 4) Sections 126 and 127 read together constitute a complete code; only a final order of assessment under Section 126(3) is appealable under Section 127, and a notice-cum-provisional assessment under Section 126(2) is not appealable.                                                          |
| SC-002 (IK/GH) | 2011 | s.126(3)<br>post-2007                     | appeal-127 · jurisdiction-145-154     | ratio       | para 58 (conclusion 5) The High Court should normally decline to interfere under Article 226 with a final assessment; it may examine a jurisdictional challenge but must not travel into the assessing officer's exclusive domain of assessment and fact-finding.                                                     |
| HC-019 (IK/GH) | 2013 | s.126 / s.135<br>post-2007                | 126v135 · mensrea-135                 | ratio       | para 25 Sections 126 and 135 sit in different Parts (XII vs XIV), cover different fields and prescribe different procedures; theft involves mens rea, which is not necessary for unauthorised use under Section 126.                                                                                                  |
| HC-019 (IK/GH) | 2013 | s.126<br>post-2007                        | 126v135 · provisional-final           | ratio       | para 29 Labelling a theft demand as a 'Section 126 provisional assessment' does not convert a theft proceeding into a Section 126 assessment where, on the date of inspection, it was treated as theft (FIR lodged) and not even as suspected theft.                                                                  |
| SC-001 (IK/GH) | 2013 | s.126<br>post-2007                        | jurisdiction-145-154 · assessment-126 | ratio       | para 30 A final assessment under Section 126 for 'unauthorised use of electricity' is a quasi-judicial decision by a public servant; it is not a 'consumer dispute' under Section 2(1)(e) of the Consumer Protection Act, 1986, and cannot be challenged by a consumer complaint.                                     |
| SC-001 (IK/GH) | 2013 | s.126<br>post-2007                        | 126v135                               | explanatory | para 35 The same acts of 'unauthorised use of electricity' attract a civil consequence (penal assessment at twice the tariff) under Section 126 and simultaneously constitute offences under Sections 135–140 — the two operate in parallel on the same conduct.                                                      |
| HC-003 (IK/GH) | 2014 | s.126<br>post-2007                        | 126v135 · assessment-126              | ratio       | reasoning on issues 1–2 'Unauthorised use of electricity' (s.126) is the genus of which the theft acts in s.135(1) are species; theft is unauthorised use done dishonestly. A Section 126 assessment therefore has to follow in every case of unauthorised use, including theft — neither section excludes the other. |

| Case                  | Yr   | as                               | issue-node                             | type  | holding (para · text)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
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| <b>HC-003</b> (IK/GH) | 2014 | s.126(3)<br>post-2007            | natural-justice ·<br>provisional-final | ratio | <b>reasoning on issue 4</b> A final assessment must be passed within thirty days of the provisional order under Section 126(3); a final order passed about two years later, without a fresh opportunity of hearing, violates natural justice and cannot be sustained.                                                                                                                                                                                                                                                                                              |
| <b>HC-009</b> (IK/GH) | 2016 | s.126 /<br>s.135<br>post-2007    | 126v135                                | ratio | <b>para (analysis)</b> Sections 126 and 135 operate in different fields: Section 126 is invoked for over-consumption / unauthorised use of electricity, whereas Section 135 is invoked for theft of electricity.                                                                                                                                                                                                                                                                                                                                                   |
| <b>HC-009</b> (IK/GH) | 2016 | s.126 /<br>s.154(5)<br>post-2007 | 126v135 ·<br>jurisdiction-145-154      | ratio | <b>para (analysis)</b> Section 126 cannot be applied to assess the amount to be charged for theft of electricity; the civil liability for theft is measured under the Section 154(5) formula (twice the tariff for the twelve months preceding detection, or the exact period of theft if determined, whichever is less), subject to final adjudication by the Special Court.                                                                                                                                                                                      |
| <b>HC-010</b> (IK/GH) | 2017 | s.126(1)<br>post-2007            | assessment-126 ·<br>natural-justice    | ratio | <b>para 31(i)</b> The physical presence of the assessing officer at the time of inspection and detection of unauthorised use is not a mandatory precondition for initiating assessment proceedings under Section 126(1).                                                                                                                                                                                                                                                                                                                                           |
| <b>HC-010</b> (IK/GH) | 2017 | s.126<br>post-2007               | assessment-126 ·<br>mensrea-135        | ratio | <b>para 31(ii)</b> 'Unauthorised use of electricity' under Section 126 covers cases of unauthorised use even without intention; the consumer's intention is not the foundation for an assessment order under Section 126 (mens rea is a Section 135 concept).                                                                                                                                                                                                                                                                                                      |
| <b>HC-010</b> (IK/GH) | 2017 | s.126(6)<br>post-2007            | assessment-126                         | ratio | <b>para 31(iii)</b> A consumer who consumes electricity in excess of the sanctioned/connected load (breach of the agreement, Regulations and the Act) is liable to pay at the rate equal to twice the tariff applicable for the relevant category of services.                                                                                                                                                                                                                                                                                                     |
| <b>HC-010</b> (IK/GH) | 2017 | s.126(6)<br>post-2007            | assessment-126                         | ratio | <b>para 31(iv)</b> The word 'tariff' in Section 126(6) includes BOTH fixed charges and energy charges; the assessment is at twice that tariff for the relevant category of services under sub-section (5).                                                                                                                                                                                                                                                                                                                                                         |
| <b>HC-010</b> (IK/GH) | 2017 | s.126(6)<br>post-2007            | assessment-126                         | ratio | <b>para 31(v)</b> Where electricity of one category is unauthorisedly used for a higher-tariff purpose, the assessment is twice the tariff applicable to that higher-tariff category for which it was used — not twice the tariff of the category to which the consumer nominally belongs.                                                                                                                                                                                                                                                                         |
| <b>HC-010</b> (IK/GH) | 2017 | s.126(6)<br>post-2007            | assessment-126                         | ratio | <b>para 30 / para 31(vi)</b> MARQUEE EXCEPTION: where the consumer is only blamed with overdrawal in excess of sanctioned/connected load in the same premises and for the same purpose (no change in the tariff category), and the excess consumption has already been metered and paid, the assessment under Section 126(6) can only be twice the FIXED charges — the consumer cannot be saddled with twice the energy charges — unless regularising the additional load necessitates upgradation of the distribution system or enhancement of the voltage level. |
| <b>HC-011</b> (IK/GH) | 2017 | s.126(1)<br>post-2007            | assessment-126 ·<br>natural-justice    | ratio | <b>para (analysis)</b> The condition precedent to a provisional assessment under Section 126(1) is a conclusion by the Assessing Officer that the person is indulging in unauthorised use; that                                                                                                                                                                                                                                                                                                                                                                    |

| Case                                           | Yr   | as                                            | issue-node                                                          | type                  | holding (para · text)                                                                                                                                                                                                                                                                                                                                                 |
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|                                                |      |                                               |                                                                     |                       | satisfaction cannot rest on the officer's mere 'vagaries' without a fair opportunity of hearing in defence.                                                                                                                                                                                                                                                           |
| <a href="#">HC-011</a> <a href="#">(IK/GH)</a> | 2017 | s.126 / s.135<br><a href="#">post-2007</a>    | <a href="#">natural-justice</a>                                     | <a href="#">ratio</a> | <a href="#">para (analysis)</a> Principles of natural justice apply to proceedings for unauthorised use of electricity (which may in some cases also amount to an investigation under Section 135) unless excluded by the Act expressly or by necessary implication.                                                                                                  |
| <a href="#">HC-011</a> <a href="#">(IK/GH)</a> | 2017 | s.126(3)<br><a href="#">post-2007</a>         | <a href="#">natural-justice</a> · <a href="#">provisional-final</a> | <a href="#">ratio</a> | <a href="#">para (analysis)</a> A final assessment made without considering the consumer's objections and without a personal hearing (as required by Section 126(3) and Clause 8.1(b)(iii) of the 2005 Code) is de hors the statutory provision and cannot stand.                                                                                                     |
| <a href="#">HC-011</a> <a href="#">(IK/GH)</a> | 2017 | s.126<br><a href="#">post-2007</a>            | <a href="#">provisional-final</a>                                   | <a href="#">ratio</a> | <a href="#">para (analysis)</a> Absent a lawful final assessment made after considering objections and hearing, the consumer cannot be compelled to deposit the provisional amount.                                                                                                                                                                                   |
| <a href="#">HC-018</a> <a href="#">(IK/GH)</a> | 2017 | s.126(1)<br><a href="#">post-2007</a>         | <a href="#">natural-justice</a> · <a href="#">assessment-126</a>    | <a href="#">ratio</a> | <a href="#">para 17</a> An inspection alleging unauthorised use under Section 126 should be conducted in the presence of the consumer (a signatory to the inspection report); the licensee's failure to show the night inspection was in the consumer's presence undermined its case.                                                                                 |
| <a href="#">HC-018</a> <a href="#">(IK/GH)</a> | 2017 | s.126(5)<br><a href="#">post-2007</a>         | <a href="#">assessment-126</a>                                      | <a href="#">ratio</a> | <a href="#">para 19</a> The Section 126(5) 12-month cap applies only where the period of unauthorised use is not ascertainable; where the period is ascertained (as here, and reduced by the Appellate Authority), the assessment is confined to that ascertained period.                                                                                             |
| <a href="#">HC-026</a> <a href="#">(IK/GH)</a> | 2018 | s.126 / s.135<br><a href="#">post-2007</a>    | <a href="#">126v135</a> · <a href="#">mensrea-135</a>               | explanatory           | <a href="#">para 22 (adopting Fiem Industries, para 58)</a> Section 135 theft falls within criminal jurisprudence and mens rea is the relevant factor; Section 126 (read with the Supply Code) does not speak of criminal intent, and the assessment under it is appealable under Section 127, whereas a Section 135 assessment (Reg. 23-AA) has no statutory appeal. |
| <a href="#">HC-023</a> <a href="#">(IK/GH)</a> | 2018 | s.126 / s.135<br><a href="#">post-2007</a>    | <a href="#">126v135</a> · <a href="#">mensrea-135</a>               | <a href="#">ratio</a> | <a href="#">para 9</a> A Section 135 criminal proceeding has no bearing on a Section 126 proceeding; even an acquittal in the criminal case for a Section 135 offence does not exonerate the consumer from Section 126 civil liability.                                                                                                                               |
| <a href="#">HC-023</a> <a href="#">(IK/GH)</a> | 2018 | s.126<br><a href="#">post-2007</a>            | <a href="#">126v135</a>                                             | <a href="#">ratio</a> | <a href="#">para 7</a> Seetaram Rice Mill lays down no ratio that a Section 126 assessment cannot be undertaken in theft cases; Section 126 covers cases over and above Section 135, and the two must be read harmoniously to make both effective.                                                                                                                    |
| <a href="#">SC-003</a> <a href="#">(IK/GH)</a> | 2019 | s.126 / s.135<br><a href="#">post-2007</a>    | <a href="#">126v135</a>                                             | <a href="#">ratio</a> | <a href="#">para 12</a> All instances of unauthorised use may not amount to theft, but theft under Section 135 falls within the definition of 'unauthorised use of electricity'; hence use through a tampered meter (Section 126(6)(b)(iii)) is unauthorised use assessable under Section 126.                                                                        |
| <a href="#">SC-003</a> <a href="#">(IK/GH)</a> | 2019 | s.126(1)<br><a href="#">post-2007</a>         | <a href="#">assessment-126</a> · <a href="#">126v135</a>            | <a href="#">ratio</a> | <a href="#">para 12</a> The authorities are empowered to make a provisional and final assessment under Section 126(1) even in cases where electricity is unauthorisedly used by way of theft.                                                                                                                                                                         |
| <a href="#">SC-003</a> <a href="#">(IK/GH)</a> | 2019 | s.126 / s.154(5)<br><a href="#">post-2007</a> | <a href="#">jurisdiction-145-154</a> · <a href="#">126v135</a>      | <a href="#">ratio</a> | <a href="#">para 14</a> The Section 126(1) assessment power and the Section 154(5) Special Court power to determine civil liability are not parallel to each                                                                                                                                                                                                          |

| Case                  | Yr   | as                                           | issue-node                        | type  | holding (para · text)                                                                                                                                                                                                                                                                                                                                                        |
|-----------------------|------|----------------------------------------------|-----------------------------------|-------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                       |      |                                              |                                   |       | other; the High Court erred in holding that both proceedings cannot operate parallelly.                                                                                                                                                                                                                                                                                      |
| <b>SC-003</b> (IK/GH) | 2019 | s.126 /<br>s.135 /<br>s.154(5)<br>post-2007  | 126v135 ·<br>jurisdiction-145-154 | ratio | <b>para 14</b> Where there is no theft (only unauthorised use), no Section 135 complaint lies and the loss is assessed under Section 126(1); where the unauthorised use amounts to theft, a Section 126(1) assessment AND a Section 135 complaint may both proceed, with the Special Court determining civil liability under Section 154(5) and any excess deposit refunded. |
| <b>SC-003</b> (IK/GH) | 2019 | s.126 /<br>s.135<br>post-2007                | burden-proof ·<br>mensrea-135     | ratio | <b>para 14</b> To prove theft in a criminal proceeding, the case must be proved beyond reasonable doubt with mens rea established; such strict proof is not necessary for assessing liability under Section 126(1).                                                                                                                                                          |
| <b>HC-027</b> (IK/GH) | 2019 | s.126 /<br>s.135<br>post-2007                | 126v135 ·<br>mensrea-135          | ratio | <b>para 19</b> Unauthorised use of electricity (Explanation (b) to Section 126) is the genus of which the Section 135(1) acts are species; theft is unauthorised use done dishonestly, so a Section 126 assessment must follow whenever there is unauthorised use.                                                                                                           |
| <b>HC-027</b> (IK/GH) | 2019 | s.126 /<br>s.135<br>post-2007                | 126v135                           | ratio | <b>para 19</b> Neither Section 126 nor Section 135 excludes a Section 126 assessment where the unauthorised use amounts to theft; the sixth proviso to Section 135(1) itself speaks of the 'assessed amount', i.e. the amount assessed under Section 126.                                                                                                                    |
| <b>HC-027</b> (IK/GH) | 2019 | s.126<br>post-2007                           | 126v135 ·<br>appeal-127           | ratio | <b>para 33</b> A Section 126 assessment is to be made even where an offence under Section 135 has been made out (FIR/final report notwithstanding); the Special Court finally determines the civil liability, with further action under Section 154(6).                                                                                                                      |
| <b>HC-014</b> (IK/GH) | 2020 | s.126<br>Explanation<br>(b)(iv)<br>post-2007 | assessment-126                    | ratio | <b>para 18</b> Consumption in excess of the sanctioned contract demand, causing a change of tariff category (LT to HT), is 'unauthorised use of electricity' squarely covered by Explanation (b) (iv) to Section 126; the consumers' cases stood clearly covered under Section 126.                                                                                          |
| <b>HC-014</b> (IK/GH) | 2020 | s.126<br>post-2007                           | assessment-126 ·<br>mensrea-135   | ratio | <b>para 16</b> Following Seetaram Rice Mill (para 35), intention is not the foundation for invoking Section 126; all that need be ascertained is whether the consumer exceeded the contract load resulting in usage beyond it.                                                                                                                                               |
| <b>HC-014</b> (IK/GH) | 2020 | s.126<br>post-2007                           | assessment-126                    | ratio | <b>para 13</b> Even where penalty @150% has already been levied for exceeding the contract demand under the Regulatory Commission's tariff order, the consumer remains liable to pay charges for unauthorised use of electricity under Section 126.                                                                                                                          |
| <b>HC-028</b> (IK/GH) | 2020 | s.126 /<br>s.135<br>post-2007                | 126v135 ·<br>appeal-127           | ratio | <b>para 9</b> Even where an FIR is lodged under Section 135, the assessment is carried out under Section 126 (with the Section 127 appeal remedy), and the Special Court finally determines the civil liability under Section 154(6).                                                                                                                                        |
| <b>HC-017</b> (IK/GH) | 2022 | s.126 /<br>s.135<br>post-2007                | 126v135                           | ratio | <b>para 19</b> Unauthorised use of electricity (Section 126) is the genus and theft (Section 135) is one of the species thereunder; the two operate in different fields.                                                                                                                                                                                                     |
| <b>HC-017</b> (IK/GH) | 2022 | s.126<br>post-2007                           | 126v135 ·<br>burden-proof         | ratio | <b>para 24</b> A Section 126 assessment is a civil enquiry to be decided on the standard of preponderance of probability, whereas Section                                                                                                                                                                                                                                    |

| Case                                           | Yr   | as                                         | issue-node                                                                                           | type  | holding (para · text)                                                                                                                                                                                                                                                                                                              |
|------------------------------------------------|------|--------------------------------------------|------------------------------------------------------------------------------------------------------|-------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                |      |                                            |                                                                                                      |       | 135 theft requires proof beyond reasonable doubt with mens rea; the yardsticks are distinct.                                                                                                                                                                                                                                       |
| <a href="#">HC-017</a> <a href="#">(IK/GH)</a> | 2022 | s.126 / s.135<br><a href="#">post-2007</a> | <a href="#">126v135</a> · <a href="#">mensrea-135</a>                                                | ratio | <a href="#">para 34</a> An acquittal on a Section 135 theft charge (tested on proof beyond reasonable doubt) does not ipso facto exonerate the consumer from civil liability under Section 126 (tested on the more liberal preponderance of probability).                                                                          |
| <a href="#">HC-022</a> <a href="#">(IK/GH)</a> | 2022 | s.126 / s.135<br><a href="#">post-2007</a> | <a href="#">126v135</a> · <a href="#">burden-proof</a>                                               | ratio | <a href="#">para 19</a> Sections 126 and 135 operate in separate fields and parallel proceedings may run; Section 126 is civil (preponderance of probability), Section 135 is criminal (beyond reasonable doubt) — the standards of proof differ.                                                                                  |
| <a href="#">HC-022</a> <a href="#">(IK/GH)</a> | 2022 | s.126 / s.135<br><a href="#">post-2007</a> | <a href="#">126v135</a> · <a href="#">mensrea-135</a> · <a href="#">burden-proof</a>                 | ratio | <a href="#">para 27</a> Where a tampered/bypassed meter is the ONLY allegation and it founds both the Section 135 prosecution and the Section 126 assessment (self-same allegation), an acquittal scot-free in the criminal case means the consumer cannot be indicted for the same charge even on a preponderance of probability. |
| <a href="#">HC-022</a> <a href="#">(IK/GH)</a> | 2022 | s.126(3)<br><a href="#">post-2007</a>      | <a href="#">provisional-final</a> · <a href="#">natural-justice</a>                                  | ratio | <a href="#">para 28</a> It is the incumbent duty of the licensee to pass a final order of assessment within 30 days of service of the provisional assessment, even if the consumer files no objection.                                                                                                                             |
| <a href="#">HC-022</a> <a href="#">(IK/GH)</a> | 2022 | s.126(3)<br><a href="#">post-2007</a>      | <a href="#">provisional-final</a>                                                                    | ratio | <a href="#">para 30</a> If no final order is drawn up, the provisional assessment order spends its force after 30 days from its service on the consumer.                                                                                                                                                                           |
| <a href="#">HC-024</a> <a href="#">(IK/GH)</a> | 2022 | s.126 / s.135<br><a href="#">post-2007</a> | <a href="#">126v135</a> · <a href="#">mensrea-135</a>                                                | ratio | <a href="#">para 19</a> The contention that an acquittal in the Section 135 criminal case extinguishes Section 126 liability is not acceptable — a Section 135 proceeding has no bearing on a Section 126 proceeding (following Orion Metal and Seetaram Rice Mill).                                                               |
| <a href="#">HC-024</a> <a href="#">(IK/GH)</a> | 2022 | s.126(2)<br><a href="#">post-2007</a>      | <a href="#">natural-justice</a> · <a href="#">provisional-final</a> · <a href="#">assessment-126</a> | ratio | <a href="#">para 24</a> The provisional assessment must be supplied to the consumer under Section 126(2); in the absence of such service there should be no demand, because a statutory power must be exercised only in the manner prescribed and not otherwise.                                                                   |
| <a href="#">HC-024</a> <a href="#">(IK/GH)</a> | 2022 | s.126<br><a href="#">post-2007</a>         | <a href="#">assessment-126</a> · <a href="#">natural-justice</a>                                     | ratio | <a href="#">para 25</a> A decision under Section 126 must be taken strictly in accordance with the statutory provision — when a statute provides that a thing be done in a particular manner, it must be done in that manner and not in any other.                                                                                 |
| <a href="#">HC-024</a> <a href="#">(IK/GH)</a> | 2022 | s.126(3)<br><a href="#">post-2007</a>      | <a href="#">provisional-final</a> · <a href="#">natural-justice</a>                                  | ratio | <a href="#">para 26</a> A demand issued without considering the consumer's objection and without making a final assessment requires interference and must be remitted for a fresh decision strictly per Section 126.                                                                                                               |
| <a href="#">HC-025</a> <a href="#">(IK/GH)</a> | 2023 | s.126 / s.135<br><a href="#">post-2007</a> | <a href="#">126v135</a>                                                                              | ratio | <a href="#">para 79</a> The vires of Sections 126 and 135 is upheld; the overlap on tampering creates no double standards — where both theft and unauthorised-use ingredients are satisfied, the authorities may make a Section 126 assessment AND proceed with a Section 135 criminal trial before the Special Court.             |
| <a href="#">HC-025</a> <a href="#">(IK/GH)</a> | 2023 | s.126(1)<br><a href="#">post-2007</a>      | <a href="#">natural-justice</a> · <a href="#">provisional-final</a>                                  | ratio | <a href="#">para 80</a> No hearing is required before a provisional assessment under Section 126(1) (which is not conclusive); the right of hearing and to file objections is given before the final order, and requiring a hearing before the provisional assessment would defeat the summary, expeditious timeline.              |

| Case                           | Yr   | as                                                      | issue-node                                            | type         | holding (para · text)                                                                                                                                                                                                                                                                      |
|--------------------------------|------|---------------------------------------------------------|-------------------------------------------------------|--------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-025</a> (IK/GH) | 2023 | <a href="#">s.126</a> <a href="#">post-2007</a>         | <a href="#">assessment-126</a>                        | <b>ratio</b> | <a href="#">para 82</a> The assessing officer is a State Government appointee (whether of the Government or the licensee) and so has an independent character, not functioning merely as an employee of the licensee — hence no unbridled power and no basis to strike down the Section.   |
| <a href="#">HC-025</a> (IK/GH) | 2023 | <a href="#">s.126 / s.135</a> <a href="#">post-2007</a> | <a href="#">126v135</a> · <a href="#">mensrea-135</a> | <b>ratio</b> | <a href="#">para 89</a> A Section 126 finding does not indict a person of theft (a criminal charge); the assessing officer merely calculates the licensee's loss, and whether theft is established is left to the Special Court's full criminal trial — so no violation of Articles 19/21. |

▼ **s.127** — 15 holdings (15 ratio) · 12 cases [post-2007](#)

| Case                           | Yr   | as                                                      | issue-node                                                        | type         | holding (para · text)                                                                                                                                                                                                                                                                                                                                                         |
|--------------------------------|------|---------------------------------------------------------|-------------------------------------------------------------------|--------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">SC-002</a> (IK/GH) | 2011 | <a href="#">s.126 / s.127</a> <a href="#">post-2007</a> | <a href="#">appeal-127</a> · <a href="#">provisional-final</a>    | <b>ratio</b> | <a href="#">para 58 (conclusion 4)</a> Sections 126 and 127 read together constitute a complete code; only a final order of assessment under Section 126(3) is appealable under Section 127, and a notice-cum-provisional assessment under Section 126(2) is not appealable.                                                                                                  |
| <a href="#">HC-019</a> (IK/GH) | 2013 | <a href="#">s.127</a> <a href="#">post-2007</a>         | <a href="#">appeal-127</a> · <a href="#">jurisdiction-145-154</a> | <b>ratio</b> | <a href="#">para 27</a> The Section 127 appeal lies only against a Section 126 order, not against a Section 135(1A)/Clause 15.8 theft assessment; the latter is examinable by the Special Court under Section 154(5)/(6).                                                                                                                                                     |
| <a href="#">SC-001</a> (IK/GH) | 2013 | <a href="#">s.127</a> <a href="#">post-2007</a>         | <a href="#">appeal-127</a>                                        | <b>ratio</b> | <a href="#">para 30</a> The remedy against a final Section 126 order is an appeal to the appellate authority under Section 127, entertained only on deposit of half the assessed amount; the appellate order is final.                                                                                                                                                        |
| <a href="#">HC-003</a> (IK/GH) | 2014 | <a href="#">s.127</a> <a href="#">post-2007</a>         | <a href="#">appeal-127</a>                                        | <b>ratio</b> | <a href="#">reasoning on issue 4 / maintainability</a> A Section 126 final assessment in a theft case is appealable under Section 127 (following Paliwal Alloys); a writ was nonetheless entertained here because jurisdiction was challenged and the order breached natural justice.                                                                                         |
| <a href="#">HC-018</a> (IK/GH) | 2017 | <a href="#">s.127</a> <a href="#">post-2007</a>         | <a href="#">appeal-127</a>                                        | <b>ratio</b> | <a href="#">para 14</a> A Section 127 appeal is not barred by limitation where the delay is attributable to the consumer's bona fide pursuit of a writ petition and writ appeal in the wrong forum; Section 14 of the Limitation Act applies to exclude that period (the Electricity Act being a special law under Section 29(2) that does not expressly exclude Section 14). |
| <a href="#">HC-018</a> (IK/GH) | 2017 | <a href="#">s.127 / s.125</a> <a href="#">post-2007</a> | <a href="#">appeal-127</a>                                        | <b>ratio</b> | <a href="#">para 10</a> Section 125 (appeal to the Supreme Court from the Appellate Tribunal, Part XI) and Section 127 (appeal to the appellate authority from a Section 126 assessment, Part XII) are totally different and operate in different contexts; authority on Section 125 limitation does not govern a Section 127 appeal.                                         |
| <a href="#">HC-026</a> (IK/GH) | 2018 | <a href="#">s.127</a> <a href="#">post-2007</a>         | <a href="#">appeal-127</a> · <a href="#">natural-justice</a>      | <b>ratio</b> | <a href="#">para 23</a> An appellate order rejecting a Section 127 appeal as not maintainable, passed without affording any opportunity of hearing, warrants interference and is quashed and remitted.                                                                                                                                                                        |
| <a href="#">HC-023</a> (IK/GH) | 2018 | <a href="#">s.127</a> <a href="#">post-2007</a>         | <a href="#">appeal-127</a> · <a href="#">provisional-final</a>    | <b>ratio</b> | <a href="#">para 9</a> Where no Section 127 appeal is filed against the final Section 126 assessment, it attains finality and the consumer is liable to pay the assessed amount.                                                                                                                                                                                              |
| <a href="#">HC-014</a> (IK/GH) | 2020 | <a href="#">s.127</a> <a href="#">post-2007</a>         | <a href="#">appeal-127</a> · <a href="#">assessment-126</a>       | <b>ratio</b> | <a href="#">para 23</a> Where the High Court has remanded a Section 127 appeal confined to quantum, the Appellate Authority cannot re-open the settled question whether Section 126 applies; the only                                                                                                                                                                         |

| Case                           | Yr   | as                                                    | issue-node                                                     | type         | holding (para · text)                                                                                                                                                                                                                                                                                |
|--------------------------------|------|-------------------------------------------------------|----------------------------------------------------------------|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                |      |                                                       |                                                                |              | question open to it is the quantum of assessment in the final bills.                                                                                                                                                                                                                                 |
| <a href="#">HC-028</a> (IK/GH) | 2020 | <a href="#">s.127</a><br><a href="#">post-2007</a>    | <a href="#">appeal-127</a>                                     | <b>ratio</b> | <a href="#">para 9</a> An order of assessment under Section 126 is appealable under Section 127 to the Commissioner of the Division (the notified appellate authority under the 14.7.2006 notification); the Commissioner was not justified in dismissing the appeal for want of jurisdiction.       |
| <a href="#">HC-028</a> (IK/GH) | 2020 | <a href="#">s.127</a><br><a href="#">post-2007</a>    | <a href="#">appeal-127</a>                                     | <b>ratio</b> | <a href="#">para 6</a> The State's 14.7.2006 notification confers on the Commissioner of the Division the power to hear and decide appeals under Section 127.                                                                                                                                        |
| <a href="#">HC-017</a> (IK/GH) | 2022 | <a href="#">s.127</a><br><a href="#">post-2007</a>    | <a href="#">appeal-127</a> · <a href="#">provisional-final</a> | <b>ratio</b> | <a href="#">para 36</a> A consumer who bypasses the Section 127 appeal (which requires a 50% pre-deposit) cannot obtain from the writ court, indirectly, the restoration he could not get from the appellate forum; there is no unqualified restoration without complying with the final assessment. |
| <a href="#">HC-022</a> (IK/GH) | 2022 | <a href="#">s.127</a><br><a href="#">post-2007</a>    | <a href="#">appeal-127</a> · <a href="#">provisional-final</a> | <b>ratio</b> | <a href="#">para 28</a> No Section 127 appeal lay because no final order of assessment was ever made; hence the writ under Article 226 is maintainable.                                                                                                                                              |
| <a href="#">HC-025</a> (IK/GH) | 2023 | <a href="#">s.127(2)</a><br><a href="#">post-2007</a> | <a href="#">appeal-127</a>                                     | <b>ratio</b> | <a href="#">para 87</a> The 50% mandatory pre-deposit under Section 127(2) is not exorbitant and is in consonance with the objects of the Act; a writ court will not sit in judgment under Article 226 over the propriety of the pre-deposit quantum.                                                |
| <a href="#">HC-025</a> (IK/GH) | 2023 | <a href="#">s.127</a><br><a href="#">post-2007</a>    | <a href="#">appeal-127</a>                                     | <b>ratio</b> | <a href="#">para 110</a> The petitioners had long overshot the Section 127 limitation and taken direct writ recourse, with nothing in the assessments reeking of palpable arbitrariness or patent perversity — so no interference under Article 226 even on merits.                                  |

▼ **s.135** — 30 holdings (25 ratio) · 18 cases [post-2007](#) [pre-2007](#)

| Case                           | Yr   | as                                                             | issue-node                                                     | type         | holding (para · text)                                                                                                                                                                                                                                                         |
|--------------------------------|------|----------------------------------------------------------------|----------------------------------------------------------------|--------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-021</a> (IK/GH) | 2005 | <a href="#">s.135</a><br><a href="#">pre-2007</a>              | <a href="#">126v135</a>                                        | explanatory  | <a href="#">para 27</a> Even if hooking was found, the Board could de-hook, realise the value of unauthorised consumption at the penal rate, or proceed under Section 135 — but that did not authorise the disconnection effected or an illegal assessment.                   |
| <a href="#">HC-020</a> (IK/GH) | 2011 | <a href="#">s.126 / s.135</a><br><a href="#">post-2007</a>     | <a href="#">126v135</a> · <a href="#">mensrea-135</a>          | explanatory  | <a href="#">para 72</a> Section 126 assessment may be made even on inspection of records where a person is found in unauthorised use, without attracting Section 135, because Section 135 contemplates a positive act interfering with the recording of electricity supplied. |
| <a href="#">SC-002</a> (IK/GH) | 2011 | <a href="#">s.126 / s.135</a><br><a href="#">post-2007</a>     | <a href="#">126v135</a>                                        | <b>ratio</b> | <a href="#">para 17</a> Sections 126 and 135 are distinct provisions that operate in different and distinct fields and have no commonality in law.                                                                                                                            |
| <a href="#">SC-002</a> (IK/GH) | 2011 | <a href="#">s.126 / s.135</a><br><a href="#">post-2007</a>     | <a href="#">126v135</a> · <a href="#">mensrea-135</a>          | <b>ratio</b> | <a href="#">para 16</a> Section 135 theft falls within criminal jurisprudence and mens rea is a relevant factor; Section 126 does not speak of any criminal intendment and is primarily a civil remedy without elements traceable to mens rea.                                |
| <a href="#">HC-019</a> (IK/GH) | 2013 | <a href="#">s.126 / s.135</a><br><a href="#">post-2007</a>     | <a href="#">126v135</a> · <a href="#">mensrea-135</a>          | <b>ratio</b> | <a href="#">para 25</a> Sections 126 and 135 sit in different Parts (XII vs XIV), cover different fields and prescribe different procedures; theft involves mens rea, which is not necessary for unauthorised use under Section 126.                                          |
| <a href="#">HC-019</a> (IK/GH) | 2013 | <a href="#">s.135 / Reg. 15.8</a><br><a href="#">post-2007</a> | <a href="#">burden-proof</a> · <a href="#">natural-justice</a> | <b>ratio</b> | <a href="#">para 23</a> A missing/tampered seal or broken glass window is not, by itself, evidence of theft unless corroborated by the consumer's                                                                                                                             |

| Case                  | Yr   | as                                   | issue-node                                                   | type        | holding (para · text)                                                                                                                                                                                                                                                                                                                                              |
|-----------------------|------|--------------------------------------|--------------------------------------------------------------|-------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                       |      |                                      |                                                              |             | consumption pattern and other available evidence — this is the safeguard for suspected-theft cases (Clause 15.8(x)-(xv)).                                                                                                                                                                                                                                          |
| <b>SC-001</b> (IK/GH) | 2013 | s.135<br>post-2007                   | <span>mensrea-135</span> · <span>jurisdiction-145-154</span> | ratio       | <span>para 46</span> Offences under Sections 135–140 (theft and allied acts) are triable only by a Special Court constituted under Section 153; a Consumer Forum has no jurisdiction over any action taken under Sections 135–140.                                                                                                                                 |
| <b>SC-007</b> (IK/GH) | 2014 | s.135<br>post-2007                   | <span>mensrea-135</span> · <span>jurisdiction-145-154</span> | ratio       | <span>para 23</span> Theft of electricity under Section 135 (punishable up to three years) is a cognizable offence; the CrPC therefore applies and it is the duty of the police to register an FIR and investigate.                                                                                                                                                |
| <b>SC-007</b> (IK/GH) | 2014 | s.135 / s.151<br>post-2007           | <span>jurisdiction-145-154</span>                            | ratio       | <span>para 25</span> The contrary High Court view (complaint-only route) does not lay down correct law; the police-FIR-competent view is approved — resolving the split.                                                                                                                                                                                           |
| <b>HC-003</b> (IK/GH) | 2014 | s.135(1)<br>6th proviso<br>post-2007 | <span>126v135</span>                                         | explanatory | <span>reasoning on issues 1–2</span> The 'assessed amount' in the sixth proviso to Section 135(1) (on payment of which supply is restored) is the amount assessed under Section 126 — textual confirmation that assessment is contemplated in theft cases.                                                                                                         |
| <b>HC-009</b> (IK/GH) | 2016 | s.126 / s.135<br>post-2007           | <span>126v135</span>                                         | ratio       | <span>para (analysis)</span> Sections 126 and 135 operate in different fields: Section 126 is invoked for over-consumption / unauthorised use of electricity, whereas Section 135 is invoked for theft of electricity.                                                                                                                                             |
| <b>HC-009</b> (IK/GH) | 2016 | s.135<br>post-2007                   | <span>natural-justice</span> · <span>mensrea-135</span>      | ratio       | <span>para (analysis)</span> A show-cause notice / opportunity of hearing is required only where theft is suspected (broken/tampered seals, no evidence at site — per Circular 54/2007); where the theft is 'writ large' (here a dead-stop meter with a soldered wire after breaking the counter lock), no opportunity of hearing need be given before proceeding. |
| <b>HC-011</b> (IK/GH) | 2017 | s.126 / s.135<br>post-2007           | <span>natural-justice</span>                                 | ratio       | <span>para (analysis)</span> Principles of natural justice apply to proceedings for unauthorised use of electricity (which may in some cases also amount to an investigation under Section 135) unless excluded by the Act expressly or by necessary implication.                                                                                                  |
| <b>HC-026</b> (IK/GH) | 2018 | s.152 / s.135<br>post-2007           | <span>compounding-152</span> · <span>appeal-127</span>       | ratio       | <span>para 22 (adopting Fiem Industries, para 64)</span> Even a consumer who has compounded and paid the compounding fee should be permitted to test the correctness of the manner of computation of the civil liability fastened on him; there is a casus omisus (no forum to test the final Section 135 assessment).                                             |
| <b>HC-026</b> (IK/GH) | 2018 | s.126 / s.135<br>post-2007           | <span>126v135</span> · <span>mensrea-135</span>              | explanatory | <span>para 22 (adopting Fiem Industries, para 58)</span> Section 135 theft falls within criminal jurisprudence and mens rea is the relevant factor; Section 126 (read with the Supply Code) does not speak of criminal intent, and the assessment under it is appealable under Section 127, whereas a Section 135 assessment (Reg. 23-AA) has no statutory appeal. |
| <b>HC-023</b> (IK/GH) | 2018 | s.126 / s.135<br>post-2007           | <span>126v135</span> · <span>mensrea-135</span>              | ratio       | <span>para 9</span> A Section 135 criminal proceeding has no bearing on a Section 126 proceeding; even an acquittal in the criminal case for a Section 135 offence does not exonerate the consumer from Section 126 civil liability.                                                                                                                               |
| <b>HC-023</b> (IK/GH) | 2018 | s.135<br>post-2007                   | <span>mensrea-135</span>                                     | explanatory | <span>para 9</span> On the facts, the acquittal was not a clean acquittal but a benefit-of-doubt acquittal on                                                                                                                                                                                                                                                      |

| Case                  | Yr   | as                                    | issue-node                           | type  | holding (para · text)                                                                                                                                                                                                                                                                                                                                                        |
|-----------------------|------|---------------------------------------|--------------------------------------|-------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                       |      |                                       |                                      |       | technicality (delayed seizure, non-production of dump copy), reinforcing that it does not undo the Section 126 civil liability.                                                                                                                                                                                                                                              |
| <b>SC-003</b> (IK/GH) | 2019 | s.126 / s.135<br>post-2007            | 126v135                              | ratio | <b>para 12</b> All instances of unauthorised use may not amount to theft, but theft under Section 135 falls within the definition of 'unauthorised use of electricity'; hence use through a tampered meter (Section 126(6)(b)(iii)) is unauthorised use assessable under Section 126.                                                                                        |
| <b>SC-003</b> (IK/GH) | 2019 | s.126 / s.135 / s.154(5)<br>post-2007 | 126v135 · jurisdiction-145-154       | ratio | <b>para 14</b> Where there is no theft (only unauthorised use), no Section 135 complaint lies and the loss is assessed under Section 126(1); where the unauthorised use amounts to theft, a Section 126(1) assessment AND a Section 135 complaint may both proceed, with the Special Court determining civil liability under Section 154(5) and any excess deposit refunded. |
| <b>SC-003</b> (IK/GH) | 2019 | s.126 / s.135<br>post-2007            | burden-proof · mensrea-135           | ratio | <b>para 14</b> To prove theft in a criminal proceeding, the case must be proved beyond reasonable doubt with mens rea established; such strict proof is not necessary for assessing liability under Section 126(1).                                                                                                                                                          |
| <b>HC-027</b> (IK/GH) | 2019 | s.126 / s.135<br>post-2007            | 126v135 · mensrea-135                | ratio | <b>para 19</b> Unauthorised use of electricity (Explanation (b) to Section 126) is the genus of which the Section 135(1) acts are species; theft is unauthorised use done dishonestly, so a Section 126 assessment must follow whenever there is unauthorised use.                                                                                                           |
| <b>HC-027</b> (IK/GH) | 2019 | s.126 / s.135<br>post-2007            | 126v135                              | ratio | <b>para 19</b> Neither Section 126 nor Section 135 excludes a Section 126 assessment where the unauthorised use amounts to theft; the sixth proviso to Section 135(1) itself speaks of the 'assessed amount', i.e. the amount assessed under Section 126.                                                                                                                    |
| <b>HC-028</b> (IK/GH) | 2020 | s.126 / s.135<br>post-2007            | 126v135 · appeal-127                 | ratio | <b>para 9</b> Even where an FIR is lodged under Section 135, the assessment is carried out under Section 126 (with the Section 127 appeal remedy), and the Special Court finally determines the civil liability under Section 154(6).                                                                                                                                        |
| <b>HC-017</b> (IK/GH) | 2022 | s.126 / s.135<br>post-2007            | 126v135                              | ratio | <b>para 19</b> Unauthorised use of electricity (Section 126) is the genus and theft (Section 135) is one of the species thereunder; the two operate in different fields.                                                                                                                                                                                                     |
| <b>HC-017</b> (IK/GH) | 2022 | s.126 / s.135<br>post-2007            | 126v135 · mensrea-135                | ratio | <b>para 34</b> An acquittal on a Section 135 theft charge (tested on proof beyond reasonable doubt) does not ipso facto exonerate the consumer from civil liability under Section 126 (tested on the more liberal preponderance of probability).                                                                                                                             |
| <b>HC-022</b> (IK/GH) | 2022 | s.126 / s.135<br>post-2007            | 126v135 · burden-proof               | ratio | <b>para 19</b> Sections 126 and 135 operate in separate fields and parallel proceedings may run; Section 126 is civil (preponderance of probability), Section 135 is criminal (beyond reasonable doubt) — the standards of proof differ.                                                                                                                                     |
| <b>HC-022</b> (IK/GH) | 2022 | s.126 / s.135<br>post-2007            | 126v135 · mensrea-135 · burden-proof | ratio | <b>para 27</b> Where a tampered/bypassed meter is the ONLY allegation and it founds both the Section 135 prosecution and the Section 126 assessment (self-same allegation), an acquittal scot-free in the criminal case means the consumer cannot be indicted for the same charge even on a preponderance of probability.                                                    |
| <b>HC-024</b> (IK/GH) | 2022 | s.126 / s.135                         | 126v135 · mensrea-135                | ratio | <b>para 19</b> The contention that an acquittal in the Section 135 criminal case extinguishes Section                                                                                                                                                                                                                                                                        |

| Case           | Yr   | as                         | issue-node            | type  | holding (para · text)                                                                                                                                                                                                                                                                                  |
|----------------|------|----------------------------|-----------------------|-------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                |      | post-2007                  |                       |       | 126 liability is not acceptable — a Section 135 proceeding has no bearing on a Section 126 proceeding (following Orion Metal and Seetaram Rice Mill).                                                                                                                                                  |
| HC-025 (IK/GH) | 2023 | s.126 / s.135<br>post-2007 | 126v135               | ratio | para 79 The vires of Sections 126 and 135 is upheld; the overlap on tampering creates no double standards — where both theft and unauthorised-use ingredients are satisfied, the authorities may make a Section 126 assessment AND proceed with a Section 135 criminal trial before the Special Court. |
| HC-025 (IK/GH) | 2023 | s.126 / s.135<br>post-2007 | 126v135 · mensrea-135 | ratio | para 89 A Section 126 finding does not indict a person of theft (a criminal charge); the assessing officer merely calculates the licensee's loss, and whether theft is established is left to the Special Court's full criminal trial — so no violation of Articles 19/21.                             |

▼ s.138 — 1 holdings (1 ratio) · 1 cases post-2007

| Case           | Yr   | as                    | issue-node     | type  | holding (para · text)                                                                                                         |
|----------------|------|-----------------------|----------------|-------|-------------------------------------------------------------------------------------------------------------------------------|
| HC-020 (IK/GH) | 2011 | s.138(d)<br>post-2007 | assessment-126 | ratio | para 187 For a contravention of Section 138(d), an assessment under Section 126 (or para 8.1 of the Code) is not permissible. |

▼ s.145 — 8 holdings (7 ratio) · 5 cases post-2007

| Case           | Yr   | as                 | issue-node                            | type        | holding (para · text)                                                                                                                                                                                                                                                                                                   |
|----------------|------|--------------------|---------------------------------------|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| SC-008 (IK/GH) | 2007 | s.145<br>post-2007 | jurisdiction-145-154 · assessment-126 | explanatory | para 8 It was noted (relying on the Board's contention and Mam Chand) that Section 145 of the 2003 Act expressly bars the civil court from entertaining suits on matters falling under Section 126, the Act being a complete code, so assessment disputes should go to the competent authority under the Act.           |
| HC-006 (IK/GH) | 2008 | s.145<br>post-2007 | jurisdiction-145-154                  | ratio       | para 16 Section 145's express bar on civil-court jurisdiction operates only in respect of Section 126 (assessment) and Section 127 (appeal) matters — not theft under Section 135.                                                                                                                                      |
| HC-006 (IK/GH) | 2008 | s.145<br>post-2007 | jurisdiction-145-154                  | ratio       | para 28 The Electricity Act is a complete code; the civil court's jurisdiction is by necessary implication barred, and a consumer cannot approach a civil court without exhausting the alternative remedies the Act provides.                                                                                           |
| SC-001 (IK/GH) | 2013 | s.145<br>post-2007 | jurisdiction-145-154                  | ratio       | para 37 (holding (iv)) Section 145 bars civil courts over any matter an assessing officer (Section 126) or appellate authority (Section 127) may determine; read with Sections 173–174, the phrase 'other authority' does not include the Consumer Fora, which are therefore also ousted.                               |
| HC-016 (IK/GH) | 2013 | s.145<br>post-2007 | jurisdiction-145-154                  | ratio       | para (order) The question whether the civil court's jurisdiction is barred by Section 145 (matters an assessing officer under Section 126 or appellate authority under Section 127 may determine) goes to the root of the matter and must be decided before a civil court adjudicates an unauthorised-abstraction suit. |
| HC-016 (IK/GH) | 2013 | s.145<br>post-2007 | jurisdiction-145-154                  | ratio       | para (order) The Section 145 bar can be agitated by the respondent-defendant                                                                                                                                                                                                                                            |

| Case                                           | Yr   | as                                              | issue-node                           | type                  | holding (para · text)                                                                                                                                                                                                                                                                                                     |
|------------------------------------------------|------|-------------------------------------------------|--------------------------------------|-----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                |      |                                                 |                                      |                       | (licensee) in the first appeal even without filing a cross-appeal or cross-objection against the trial court's finding on jurisdiction.                                                                                                                                                                                   |
| <a href="#">HC-016</a> <a href="#">(IK/GH)</a> | 2013 | <a href="#">s.145</a> <a href="#">post-2007</a> | <a href="#">jurisdiction-145-154</a> | <a href="#">ratio</a> | <a href="#">para (order)</a> Section 145 effects an absolute exclusion of the civil court's jurisdiction over unlawful-abstraction assessment matters; the appeal is remanded for that question to be decided.                                                                                                            |
| <a href="#">HC-017</a> <a href="#">(IK/GH)</a> | 2022 | <a href="#">s.145</a> <a href="#">post-2007</a> | <a href="#">jurisdiction-145-154</a> | <a href="#">ratio</a> | <a href="#">para 33</a> Section 145 bars civil-court interference in respect of assessments under Sections 126 and 127; a Section 135 FIR instead leads to a Section 154 Special Court criminal action, with civil liability under Section 154(5) independent of and subject to the Section 126 deposit (Section 154(6)). |

▼ **s.151** — 3 holdings (3 ratio) · 1 cases [post-2007](#)

| Case                                           | Yr   | as                                                      | issue-node                                                         | type                  | holding (para · text)                                                                                                                                                                                                                                                                                                                     |
|------------------------------------------------|------|---------------------------------------------------------|--------------------------------------------------------------------|-----------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">SC-007</a> <a href="#">(IK/GH)</a> | 2014 | <a href="#">s.151</a> <a href="#">post-2007</a>         | <a href="#">jurisdiction-145-154</a> · <a href="#">mensrea-135</a> | <a href="#">ratio</a> | <a href="#">para 23</a> Section 151 enables authorised persons to file a written complaint before the Court (on which cognizance may be taken straightway), but it does not exclude the other avenue of a police FIR/investigation; the Electricity Act is not a complete machinery for how offences are dealt with, so the CrPC governs. |
| <a href="#">SC-007</a> <a href="#">(IK/GH)</a> | 2014 | <a href="#">s.151</a> <a href="#">post-2007</a>         | <a href="#">jurisdiction-145-154</a>                               | <a href="#">ratio</a> | <a href="#">para 17</a> The amendment (proviso) to Section 151 permitting cognizance on a police report is clarificatory in nature and applies to pending matters (retrospective); notwithstanding Section 151, an FIR could be filed with the police even under the unamended provision.                                                 |
| <a href="#">SC-007</a> <a href="#">(IK/GH)</a> | 2014 | <a href="#">s.135 / s.151</a> <a href="#">post-2007</a> | <a href="#">jurisdiction-145-154</a>                               | <a href="#">ratio</a> | <a href="#">para 25</a> The contrary High Court view (complaint-only route) does not lay down correct law; the police-FIR-competent view is approved — resolving the split.                                                                                                                                                               |

▼ **s.152** — 7 holdings (7 ratio) · 3 cases [post-2007](#)

| Case                                           | Yr   | as                                                         | issue-node                                                             | type                  | holding (para · text)                                                                                                                                                                                                                                                                          |
|------------------------------------------------|------|------------------------------------------------------------|------------------------------------------------------------------------|-----------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-029</a> <a href="#">(IK/GH)</a> | 2014 | <a href="#">s.152(3)</a> <a href="#">post-2007</a>         | <a href="#">compounding-152</a>                                        | <a href="#">ratio</a> | <a href="#">para 20</a> Acceptance of the compounding fee under Section 152 is deemed to amount to an acquittal within the meaning of Section 300 CrPC.                                                                                                                                        |
| <a href="#">HC-029</a> <a href="#">(IK/GH)</a> | 2014 | <a href="#">s.152 / s.154(5)</a> <a href="#">post-2007</a> | <a href="#">compounding-152</a> · <a href="#">jurisdiction-145-154</a> | <a href="#">ratio</a> | <a href="#">para 25</a> After a deemed acquittal by compounding under Section 152(3), the Special Court cannot determine civil liability under Section 154(5); there is no different consequence between an acquittal after full trial and a deemed acquittal by compounding.                  |
| <a href="#">HC-029</a> <a href="#">(IK/GH)</a> | 2014 | <a href="#">s.152</a> <a href="#">post-2007</a>            | <a href="#">compounding-152</a>                                        | <a href="#">ratio</a> | <a href="#">para 22</a> There cannot be any compounding of the offence under Section 152 without the consent of the complainant-licensee; Section 152 permits the appropriate government to pass the compounding order but does not dispense with the complainant's consent.                   |
| <a href="#">HC-009</a> <a href="#">(IK/GH)</a> | 2016 | <a href="#">s.152</a> <a href="#">post-2007</a>            | <a href="#">compounding-152</a>                                        | <a href="#">ratio</a> | <a href="#">para (analysis)</a> The remedy of compounding under Section 152 is available in both cases — established theft and suspected theft; accepting the compounding notice avoids trial before the Special Court, refusing it exposes the consumer to punishment and fine by that Court. |
| <a href="#">HC-026</a> <a href="#">(IK/GH)</a> | 2018 | <a href="#">s.152</a> <a href="#">post-2007</a>            | <a href="#">compounding-152</a>                                        | <a href="#">ratio</a> | <a href="#">para 22 (adopting Fiem Industries, para 57)</a> Compounding of an offence under Section 152 cannot be done 'under                                                                                                                                                                  |

| Case                                           | Yr   | as                                                      | issue-node                                                   | type         | holding (para · text)                                                                                                                                                                                                                                                                                                      |
|------------------------------------------------|------|---------------------------------------------------------|--------------------------------------------------------------|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                                |      |                                                         |                                                              |              | protest' — it is not recognised in law; if the consumer protests, the authorised officer must instead launch prosecution.                                                                                                                                                                                                  |
| <a href="#">HC-026</a> <a href="#">(IK/GH)</a> | 2018 | <a href="#">s.152</a> <a href="#">post-2007</a>         | <a href="#">compounding-152</a>                              | <b>ratio</b> | <a href="#">para 22 (adopting Fiem Industries, para 61)</a> Once the consumer exercises the option to compound (an admission of guilt deemed an acquittal), there is no retracting it and he cannot canvass the correctness of the finding of guilt or claim he was compelled to compound under protest.                   |
| <a href="#">HC-026</a> <a href="#">(IK/GH)</a> | 2018 | <a href="#">s.152 / s.135</a> <a href="#">post-2007</a> | <a href="#">compounding-152</a> · <a href="#">appeal-127</a> | <b>ratio</b> | <a href="#">para 22 (adopting Fiem Industries, para 64)</a> Even a consumer who has compounded and paid the compounding fee should be permitted to test the correctness of the manner of computation of the civil liability fastened on him; there is a casus omissus (no forum to test the final Section 135 assessment). |

▼ **s.153** — 1 holdings (1 ratio) · 1 cases [post-2007](#)

| Case                                           | Yr   | as                                                    | issue-node                           | type         | holding (para · text)                                                                                                                                                                                                                                               |
|------------------------------------------------|------|-------------------------------------------------------|--------------------------------------|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-006</a> <a href="#">(IK/GH)</a> | 2008 | <a href="#">s.153/s.154</a> <a href="#">post-2007</a> | <a href="#">jurisdiction-145-154</a> | <b>ratio</b> | <a href="#">para 30</a> Any dispute about civil liability in theft cases is impliedly excluded from the jurisdiction of the civil court by Sections 153 and 154, under which the Special Court determines such liability (acting as both civil and criminal court). |

▼ **s.154** — 14 holdings (14 ratio) · 9 cases [post-2007](#)

| Case                                           | Yr   | as                                                         | issue-node                                                             | type         | holding (para · text)                                                                                                                                                                                                                                                                                                       |
|------------------------------------------------|------|------------------------------------------------------------|------------------------------------------------------------------------|--------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-006</a> <a href="#">(IK/GH)</a> | 2008 | <a href="#">s.154(5)</a> <a href="#">post-2007</a>         | <a href="#">jurisdiction-145-154</a>                                   | <b>ratio</b> | <a href="#">para 22</a> Section 154(5) invests the Special Court with jurisdiction to determine the quantum of civil liability in theft cases; a consumer disputing a theft bill must challenge it before the Special Court, even where no criminal complaint has been filed.                                               |
| <a href="#">HC-006</a> <a href="#">(IK/GH)</a> | 2008 | <a href="#">s.153/s.154</a> <a href="#">post-2007</a>      | <a href="#">jurisdiction-145-154</a>                                   | <b>ratio</b> | <a href="#">para 30</a> Any dispute about civil liability in theft cases is impliedly excluded from the jurisdiction of the civil court by Sections 153 and 154, under which the Special Court determines such liability (acting as both civil and criminal court).                                                         |
| <a href="#">HC-019</a> <a href="#">(IK/GH)</a> | 2013 | <a href="#">s.154(5)/(6)</a> <a href="#">post-2007</a>     | <a href="#">jurisdiction-145-154</a>                                   | <b>ratio</b> | <a href="#">para 35</a> The remedy against a final theft assessment is before the Special Court under Section 154(5)/(6), which determines the civil liability; the writ court will not interfere.                                                                                                                          |
| <a href="#">HC-003</a> <a href="#">(IK/GH)</a> | 2014 | <a href="#">s.154(5),(6)</a> <a href="#">post-2007</a>     | <a href="#">126v135</a> · <a href="#">jurisdiction-145-154</a>         | <b>ratio</b> | <a href="#">reasoning on issues 1–2</a> The Special Court's power under Section 154(5) to determine civil liability for theft does not preclude a Section 126 assessment; the amount 'deposited' referred to in Section 154(6) is the amount assessed under Section 126, there being no other provision for such a deposit. |
| <a href="#">HC-029</a> <a href="#">(IK/GH)</a> | 2014 | <a href="#">s.154(5)</a> <a href="#">post-2007</a>         | <a href="#">compounding-152</a> · <a href="#">jurisdiction-145-154</a> | <b>ratio</b> | <a href="#">para 25</a> Civil liability under Section 154(5) is defined (Explanation) as loss 'due to the commission of an offence', so its determination must necessarily be preceded by a positive determination of the commission of the offence.                                                                        |
| <a href="#">HC-029</a> <a href="#">(IK/GH)</a> | 2014 | <a href="#">s.152 / s.154(5)</a> <a href="#">post-2007</a> | <a href="#">compounding-152</a> · <a href="#">jurisdiction-145-154</a> | <b>ratio</b> | <a href="#">para 25</a> After a deemed acquittal by compounding under Section 152(3), the Special Court cannot determine civil liability under Section 154(5); there is no different consequence between an acquittal after full trial and a deemed acquittal by compounding.                                               |

| Case                           | Yr   | as                                                                    | issue-node                                                     | type  | holding (para · text)                                                                                                                                                                                                                                                                                                                                                                  |
|--------------------------------|------|-----------------------------------------------------------------------|----------------------------------------------------------------|-------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">HC-029</a> (IK/GH) | 2014 | <a href="#">s.154</a><br><a href="#">post-2007</a>                    | <a href="#">jurisdiction-145-154</a>                           | ratio | <a href="#">para 26</a> The Special Court combines both criminal and civil jurisdictions, so the view that a criminal court cannot determine civil liability is incorrect; but its conclusion that no civil liability can be determined after a compounding-acquittal is correct.                                                                                                      |
| <a href="#">HC-009</a> (IK/GH) | 2016 | <a href="#">s.126 / s.154(5)</a><br><a href="#">post-2007</a>         | <a href="#">126v135</a> · <a href="#">jurisdiction-145-154</a> | ratio | <a href="#">para (analysis)</a> Section 126 cannot be applied to assess the amount to be charged for theft of electricity; the civil liability for theft is measured under the Section 154(5) formula (twice the tariff for the twelve months preceding detection, or the exact period of theft if determined, whichever is less), subject to final adjudication by the Special Court. |
| <a href="#">HC-023</a> (IK/GH) | 2018 | <a href="#">s.154(6)</a><br><a href="#">post-2007</a>                 | <a href="#">jurisdiction-145-154</a>                           | ratio | <a href="#">para 6</a> The amount 'deposited by the consumer' in Section 154(6) is the amount deposited under Section 126 (there being no other deposit provision for theft), so the Section 154(5) Special Court does not oust the Section 126 assessment; the argument that only the Special Court may assess is rejected.                                                           |
| <a href="#">SC-003</a> (IK/GH) | 2019 | <a href="#">s.126 / s.154(5)</a><br><a href="#">post-2007</a>         | <a href="#">jurisdiction-145-154</a> · <a href="#">126v135</a> | ratio | <a href="#">para 14</a> The Section 126(1) assessment power and the Section 154(5) Special Court power to determine civil liability are not parallel to each other; the High Court erred in holding that both proceedings cannot operate parallelly.                                                                                                                                   |
| <a href="#">SC-003</a> (IK/GH) | 2019 | <a href="#">s.126 / s.135 / s.154(5)</a><br><a href="#">post-2007</a> | <a href="#">126v135</a> · <a href="#">jurisdiction-145-154</a> | ratio | <a href="#">para 14</a> Where there is no theft (only unauthorised use), no Section 135 complaint lies and the loss is assessed under Section 126(1); where the unauthorised use amounts to theft, a Section 126(1) assessment AND a Section 135 complaint may both proceed, with the Special Court determining civil liability under Section 154(5) and any excess deposit refunded.  |
| <a href="#">SC-003</a> (IK/GH) | 2019 | <a href="#">s.154(5)</a><br><a href="#">post-2007</a>                 | <a href="#">jurisdiction-145-154</a>                           | ratio | <a href="#">para 12</a> Merely because the Special Court is empowered to determine civil liability under Section 154(5) where a complaint is lodged, it cannot be said that the authorities have no power to make a Section 126 assessment.                                                                                                                                            |
| <a href="#">HC-027</a> (IK/GH) | 2019 | <a href="#">s.154(6)</a><br><a href="#">post-2007</a>                 | <a href="#">jurisdiction-145-154</a>                           | ratio | <a href="#">para 23</a> The 'amount deposited by the consumer' in Section 154(6) is the amount deposited under Section 126 — there being no other deposit provision for theft — so Section 126 assessment and the Special Court's Section 154(5) determination coexist.                                                                                                                |
| <a href="#">HC-022</a> (IK/GH) | 2022 | <a href="#">s.154(6)</a><br><a href="#">post-2007</a>                 | <a href="#">jurisdiction-145-154</a>                           | ratio | <a href="#">para 36</a> The Explanation to Section 154(6) ('civil liability') refers to the liability determined by the Special Court under Section 154(5) for theft, not to the amount raised as a provisional assessment under Section 126.                                                                                                                                          |

▼ **s.173** — 1 holdings (1 ratio) · 1 cases [post-2007](#)

| Case                           | Yr   | as                                                         | issue-node                           | type  | holding (para · text)                                                                                                                                                                                                                                                                                                                                                            |
|--------------------------------|------|------------------------------------------------------------|--------------------------------------|-------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">SC-001</a> (IK/GH) | 2013 | <a href="#">s.173/174/175</a><br><a href="#">post-2007</a> | <a href="#">jurisdiction-145-154</a> | ratio | <a href="#">para 45</a> Although Sections 173–175 and Section 3 CPA save consumer rights and give the CPA primacy on true inconsistency, they do not vest a Consumer Forum with power to adjudicate a Section 126 assessment or a Sections 135–140 offence, because such acts are neither a 'complaint' (s.2(1)(c)) nor a 'deficiency in service' (s.2(1)(o),(g)) under the CPA. |

▼ **s.181** — 1 holdings (1 ratio) · 1 cases post-2007

| Case                  | Yr   | as                                  | issue-node           | type         | holding (para · text)                                                                                                                                                                                                                                       |
|-----------------------|------|-------------------------------------|----------------------|--------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SC-005</b> (IK/GH) | 2023 | s.181 / s.50 <span>post-2007</span> | jurisdiction-145-154 | <b>ratio</b> | <span>para 328(g)</span> The rule-making power under Section 181 read with Section 50 is wide enough to enable the regulatory commission to provide for a statutory CHARGE on the premises, even absent a charge-creating provision in the plenary statute. |

▼ **Consumer Protection Act** — 1 holdings (1 ratio) · 1 cases post-2007

| Case                  | Yr   | as                                             | issue-node           | type         | holding (para · text)                                                                                                                                                         |
|-----------------------|------|------------------------------------------------|----------------------|--------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>SC-006</b> (IK/GH) | 2021 | Consumer Protection Act <span>post-2007</span> | jurisdiction-145-154 | <b>ratio</b> | <span>para 22</span> A consumer forum must, at the threshold, find whether there was any deficiency in service before it can test the licensee's recovery against Section 56. |

▼ **Reg. 15.8** — 1 holdings (1 ratio) · 1 cases post-2007

| Case                  | Yr   | as                               | issue-node                  | type         | holding (para · text)                                                                                                                                                                                                                        |
|-----------------------|------|----------------------------------|-----------------------------|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>HC-019</b> (IK/GH) | 2013 | Reg. 15.8 <span>post-2007</span> | 126v135 · provisional-final | <b>ratio</b> | <span>para 30</span> The suspected-theft safeguards in Clause 15.8(x)-(xv) (continued supply, provisional assessment, show-cause, 75%-consumption drop) have no application to a clear theft case, which is governed by Clause 15.8(i)-(ix). |

▼ **Reg. 8.1 (UP Code)** — 1 holdings (1 ratio) · 1 cases post-2007

| Case                  | Yr   | as                                        | issue-node                  | type         | holding (para · text)                                                                                                                                                                                                                 |
|-----------------------|------|-------------------------------------------|-----------------------------|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>HC-027</b> (IK/GH) | 2019 | Reg. 8.1 (UP Code) <span>post-2007</span> | 126v135 · provisional-final | <b>ratio</b> | <span>para 28</span> The U.P. Electricity Supply Code, 2005 (Clause 8.1) requires a provisional assessment bill and final assessment even in Section 135 theft cases, confirming that assessment for theft is made under Section 126. |

▼ **Tariff Clause 16.9** — 2 holdings (2 ratio) · 1 cases pre-2003

| Case                  | Yr   | as                                       | issue-node                          | type         | holding (para · text)                                                                                                                                                                                                                                                                                                   |
|-----------------------|------|------------------------------------------|-------------------------------------|--------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>HC-013</b> (IK/GH) | 2002 | Tariff Clause 16.9 <span>pre-2003</span> | natural-justice                     | <b>ratio</b> | <span>para 21</span> Where urgent action is needed to protect the Board's property and prevent ongoing pilferage, the audi alteram partem rule is dispensed with; disconnection without notice is valid and not violative of natural justice or Article 14.                                                             |
| <b>HC-013</b> (IK/GH) | 2002 | Tariff Clause 16.9 <span>pre-2003</span> | natural-justice · provisional-final | <b>ratio</b> | <span>para 27</span> Although natural justice is excluded at the disconnection stage, the determination of the value of energy consumed and the assessment of compensation must be made after giving the affected person an opportunity of hearing — that requirement is read into the clause even though it is silent. |

## 2 · Issue matrix — line of authority + leading case per issue-node

▼ **126v135** — 18 cases · lead **SC-002** (SC)

line of authority: **HC-013** (IK/GH) HC·2002 → **HC-021** (IK/GH) HC·2005 → **HC-006** (IK/GH) HC·2008 → **HC-020** (IK/GH) HC·2011 → **SC-002** (IK/GH) SC·2011 → **HC-019** (IK/GH) HC·2013 → **SC-001** (IK/GH) SC·2013 → **HC-003** (IK/GH) HC·2014 → **HC-009** (IK/GH) HC·2016 → **HC-026** (IK/GH) HC·2018 → **HC-023** (IK/GH) HC·2018 → **SC-003** (IK/GH) SC·2019 →

[HC-027 \(IK/GH\)](#) HC·2019 → [HC-028 \(IK/GH\)](#) HC·2020 → [HC-017 \(IK/GH\)](#) HC·2022 → [HC-022 \(IK/GH\)](#) HC·2022 → [HC-024 \(IK/GH\)](#) HC·2022 → [HC-025 \(IK/GH\)](#) HC·2023

[HC-013 \(IK/GH\)](#) [holding](#) · [Tariff Clause 16.9 / s.49 Supply Act](#) · [ratio](#) [para 21](#)

Consumption beyond the sanctioned load without the Board's consent amounts to theft or malpractice; the statutory tariff (Clause 16.9) empowers the Board to disconnect supply without notice on detecting unauthorised load.

[HC-021 \(IK/GH\)](#) [holding](#) · [s.135](#) · [explanatory](#) [para 27](#)

Even if hooking was found, the Board could de-hook, realise the value of unauthorised consumption at the penal rate, or proceed under Section 135 — but that did not authorise the disconnection effected or an illegal assessment.

[HC-006 \(IK/GH\)](#) [HC-DB-binding \(Delhi\)](#) [affirms](#)

Section 126 (unauthorised use — civil, no mens rea) and Section 135 (theft — criminal, dishonesty) operate in different fields.

[HC-020 \(IK/GH\)](#) [holding](#) · [s.126 / s.135](#) · [explanatory](#) [para 72](#)

Section 126 assessment may be made even on inspection of records where a person is found in unauthorised use, without attracting Section 135, because Section 135 contemplates a positive act interfering with the recording of electricity supplied.

[SC-002 \(IK/GH\)](#) [SC-binding](#) [settles](#)

Sections 126 (civil, no mens rea, unauthorised use of wider purposive connotation covering excess-load/change-of-category under Explanation (b)(iv)) and 135 (criminal, dishonesty) operate in different and distinct fields with no commonality; Sections 126-127 are a complete code, only the final Section 126(3) assessment is appealable under Section 127, and the High Court should not ordinarily interfere with a final assessment under Article 226.

[HC-019 \(IK/GH\)](#) [HC-DB \(Jharkhand\)](#) [settles-explains](#)

Where a case is treated as theft (FIR lodged, not suspected theft or mere unauthorised use), the Section 126 / Clause 15.7 provisional-assessment machinery and the suspected-theft safeguards of Clause 15.8(x)-(xv) do not apply; the procedure is Section 135(1A)/Clause 15.8(i)-(ix), and mislabelling the theft bill as a Section 126 assessment does not convert the proceeding.

[SC-001 \(IK/GH\)](#) [SC-binding](#) [explains](#)

Section 126 (civil assessment) and Sections 135–140 (criminal offences) apply in parallel to the same act of unauthorised use; a Section 126 assessment is a civil/quasi-judicial consequence, not a criminal adjudication.

[HC-003 \(IK/GH\)](#) [HC-DB-binding \(Allahabad\)](#) [affirms-extends](#)

An assessment under Section 126 must be made even where a Section 135 theft offence has been booked and is pending before the Special Court; the Special Court's civil-liability determination under Section 154(5) does not oust the assessing officer's Section 126 power. The two tracks (civil assessment + criminal trial) run in parallel.

[HC-009 \(IK/GH\)](#) [HC-SB \(Punjab & Haryana\)](#) [applies](#)

Sections 126 and 135 operate in different and distinct fields; theft under Section 135 cannot be assessed under Section 126, and its civil liability is measured under the Section 154(5) formula, subject to final adjudication by the Special Court.

[HC-026 \(IK/GH\)](#) [holding](#) · [s.126 / s.135](#) · [explanatory](#) [para 22 \(adopting Fiem Industries, para 58\)](#)

Section 135 theft falls within criminal jurisprudence and mens rea is the relevant factor; Section 126 (read with the Supply Code) does not speak of criminal intent, and the assessment under it is appealable under Section 127, whereas a Section 135 assessment (Reg. 23-AA) has no statutory appeal.

[HC-023 \(IK/GH\)](#) [HC-SB \(Orissa\)](#) [settles](#)

A Section 126 assessment may be made even in theft cases and is unaffected by the outcome of the Section 135 prosecution — an acquittal (a fortiori a benefit-of-doubt acquittal) does not exonerate the civil liability under Section 126; Section 154(5) does not oust Section 126, and an un-appealed final assessment attains finality.

[SC-003 \(IK/GH\)](#) [SC-binding](#) [settles](#)

Theft under Section 135 is a subset of 'unauthorised use', so a Section 126 assessment may be made even in theft cases; the Section 126(1) assessment and the Section 154(5) Special Court determination are not parallel/mutually exclusive and

may both proceed, the Section 126 assessment requiring only civil proof (preponderance), not proof beyond reasonable doubt.

**HC-027** (IK/GH) HC-DB (Allahabad) affirms

Because unauthorised use (Section 126) is the genus and theft (Section 135) a species, a Section 126 assessment must be made even in theft cases (with a Section 127 appeal); an FIR/final report under Section 135 does not bar it, and the Special Court finally determines civil liability under Section 154(6).

**HC-028** (IK/GH) holding · s.126 / s.135 · ratio para 9

Even where an FIR is lodged under Section 135, the assessment is carried out under Section 126 (with the Section 127 appeal remedy), and the Special Court finally determines the civil liability under Section 154(6).

**HC-017** (IK/GH) HC-SB (Calcutta) settles

Because unauthorised use (Section 126, civil, preponderance of probability) is the genus and theft (Section 135, criminal, proof beyond reasonable doubt + mens rea) only a species, an acquittal on a theft charge does not ipso facto extinguish civil liability under Section 126; the two channels operate on separate footings.

**HC-022** (IK/GH) HC-SB (Calcutta) extends

Although Sections 126 and 135 run in parallel with different proof standards, where the Section 126 assessment rests solely on the self-same allegation (tampered/bypassed meter) as the Section 135 prosecution, an honourable acquittal exonerates the consumer under Section 126 too, because the same charge cannot survive on preponderance of probability once it has failed beyond reasonable doubt.

**HC-024** (IK/GH) HC-DB (Jharkhand) affirms

An acquittal in the Section 135 criminal case does not exonerate Section 126 civil liability (the two proceedings have no bearing on each other).

**HC-025** (IK/GH) HC-SB (Calcutta) affirms

Sections 126 and 135 are constitutionally valid: their overlap on tampering permits parallel Section 126 assessment and Section 135 Special-Court trial without double standards; no hearing is due before a non-conclusive provisional assessment; the assessing officer is an independent State appointee; and the Section 127(2) 50% pre-deposit is valid and beyond Article 226 interference.

## ▼ appeal-127 — 14 cases · lead **SC-002** (SC)

**line of authority:** **HC-020** (IK/GH) HC·2011 → **SC-002** (IK/GH) SC·2011 → **HC-019** (IK/GH) HC·2013 → **SC-001** (IK/GH) SC·2013 → **HC-003** (IK/GH) HC·2014 → **HC-018** (IK/GH) HC·2017 → **HC-026** (IK/GH) HC·2018 → **HC-023** (IK/GH) HC·2018 → **HC-027** (IK/GH) HC·2019 → **HC-014** (IK/GH) HC·2020 → **HC-028** (IK/GH) HC·2020 → **HC-017** (IK/GH) HC·2022 → **HC-022** (IK/GH) HC·2022 → **HC-025** (IK/GH) HC·2023

**HC-020** (IK/GH) HC-SB (Allahabad) affirms

The Section 127 appellate authority must apply its own mind, read the relevant provisions and pass a reasoned, speaking order; a shallow, non-speaking affirmance cannot stand.

**SC-002** (IK/GH) holding · s.126 / s.127 · ratio para 58 (conclusion 4)

Sections 126 and 127 read together constitute a complete code; only a final order of assessment under Section 126(3) is appealable under Section 127, and a notice-cum-provisional assessment under Section 126(2) is not appealable.

**SC-002** (IK/GH) holding · s.126(3) · ratio para 58 (conclusion 5)

The High Court should normally decline to interfere under Article 226 with a final assessment; it may examine a jurisdictional challenge but must not travel into the assessing officer's exclusive domain of assessment and fact-finding.

**HC-019** (IK/GH) HC-DB (Jharkhand) settles

A Section 127 appeal lies only against a Section 126 order; a Section 135(1A)/theft assessment is not appealable under Section 127 and is examinable only by the Special Court under Section 154(5)/(6).

**SC-001** (IK/GH) holding · s.127 · ratio para 30

The remedy against a final Section 126 order is an appeal to the appellate authority under Section 127, entertained only on deposit of half the assessed amount; the appellate order is final.

**HC-003 (IK/GH)** holding · s.127 · ratio reasoning on issue 4 / maintainability

A Section 126 final assessment in a theft case is appealable under Section 127 (following Paliwal Alloys); a writ was nonetheless entertained here because jurisdiction was challenged and the order breached natural justice.

**HC-018 (IK/GH)** HC-SB (Orissa) settles

The limitation for a Section 127 appeal against a Section 126 assessment is subject to Section 14 of the Limitation Act (Electricity Act being a special law under Section 29(2)): time spent bona fide pursuing a writ remedy in the wrong forum is excluded, so the appeal is not time-barred; Section 125 (SC appeal from the Appellate Tribunal) is distinct and its limitation authority does not apply.

**HC-026 (IK/GH)** holding · s.152 / s.135 · ratio para 22 (adopting Fiem Industries, para 64)

Even a consumer who has compounded and paid the compounding fee should be permitted to test the correctness of the manner of computation of the civil liability fastened on him; there is a casus omissus (no forum to test the final Section 135 assessment).

**HC-026 (IK/GH)** holding · s.127 · ratio para 23

An appellate order rejecting a Section 127 appeal as not maintainable, passed without affording any opportunity of hearing, warrants interference and is quashed and remitted.

**HC-023 (IK/GH)** holding · s.127 · ratio para 9

Where no Section 127 appeal is filed against the final Section 126 assessment, it attains finality and the consumer is liable to pay the assessed amount.

**HC-027 (IK/GH)** holding · s.126 · ratio para 33

A Section 126 assessment is to be made even where an offence under Section 135 has been made out (FIR/final report notwithstanding); the Special Court finally determines the civil liability, with further action under Section 154(6).

**HC-014 (IK/GH)** HC-SB (Bombay, Nagpur Bench) settles

On a Section 127 appeal remanded solely on quantum, the Appellate Authority is bound by the finding that Section 126 applies and cannot re-litigate applicability; its remit is confined to the quantum of assessment.

**HC-028 (IK/GH)** HC-SB (Allahabad) applies

A Section 126 assessment is appealable under Section 127 to the notified appellate authority (in U.P., the Commissioner of the Division) even when an FIR under Section 135 exists; the appellate authority cannot decline jurisdiction, and the Special Court finally determines civil liability under Section 154(6).

**HC-017 (IK/GH)** HC-SB (Calcutta) affirms

A consumer who forgoes the Section 127 appeal (and its 50% pre-deposit) and lets the assessment attain finality cannot secure unqualified restoration of supply via a writ; Section 145 bars civil-court interference with Section 126/127 assessments.

**HC-022 (IK/GH)** holding · s.127 · ratio para 28

No Section 127 appeal lay because no final order of assessment was ever made; hence the writ under Article 226 is maintainable.

**HC-025 (IK/GH)** HC-SB (Calcutta) applies

A consumer who lets the Section 127 appeal become time-barred cannot, absent palpable arbitrariness, obtain relief by a direct writ under Article 226.

## ▼ assessment-126 — 14 cases · lead **SC-002** (SC)

line of authority: **HC-021** (IK/GH) HC·2005 → **SC-008** (IK/GH) SC·2007 → **HC-020** (IK/GH) HC·2011 → **SC-002** (IK/GH) SC·2011 → **SC-001** (IK/GH) SC·2013 → **HC-003** (IK/GH) HC·2014 → **HC-010** (IK/GH) HC·2017 → **HC-011** (IK/GH) HC·2017 → **HC-018** (IK/GH) HC·2017 → **SC-003** (IK/GH) SC·2019 → **HC-014** (IK/GH) HC·2020 → **SC-006** (IK/GH) SC·2021 → **HC-024** (IK/GH) HC·2022 → **HC-025** (IK/GH) HC·2023

**HC-021 (IK/GH)** HC-SB (Calcutta) settles

A Section 126 provisional assessment must (a) be made under Section 126 itself, not under the Board's old supply conditions, and (b) be the assessing officer's own best judgment on his personal observation; an assessment dictated by a superior's guideline is a nullity, and coerced payment on an illegal assessment is recoverable as unjust enrichment.

**SC-008 (IK/GH)** holding · s.145 · explanatory para 8

It was noted (relying on the Board's contention and Mam Chand) that Section 145 of the 2003 Act expressly bars the civil court from entertaining suits on matters falling under Section 126, the Act being a complete code, so assessment disputes should go to the competent authority under the Act.

**SC-008 (IK/GH)** holding · s.126 · ratio para 8

Assessment of the charge for unauthorised use, meter-tampering and calibration are technical matters; whether the beneficial consumer jurisdiction extends to such determinations (and to tortious acts like disconnection) is left open and remitted to the National Commission.

**HC-020 (IK/GH)** HC-SB (Allahabad) settles

An assessing officer cannot make a theft assessment without first establishing a case of theft (para 8.1(b)(iv)); the best-judgment assessment must be reasoned, unbiased and rational, an oral hearing must be given, and theft cannot be inferred on mere presumption or on readings of meters not installed at the consumer's premises absent a specific enabling provision.

**SC-002 (IK/GH)** holding · s.126 · ratio para 17

'Unauthorised use of electricity' under Section 126 deals with cases of unauthorised use even in the absence of intention — distinct from dishonest abstraction under Section 135.

**SC-002 (IK/GH)** holding · s.126 Explanation (b)(iv) · ratio para 58 (conclusion 2)

'Unauthorised use of electricity' is an expression of wider connotation to be construed purposively; excess-load consumption beyond the connected load falls under Explanation (b)(iv) to Section 126 (besides violating the Regulations and agreement).

**SC-001 (IK/GH)** holding · s.126 · ratio para 30

A final assessment under Section 126 for 'unauthorised use of electricity' is a quasi-judicial decision by a public servant; it is not a 'consumer dispute' under Section 2(1)(e) of the Consumer Protection Act, 1986, and cannot be challenged by a consumer complaint.

**HC-003 (IK/GH)** holding · s.126 · ratio reasoning on issues 1–2

'Unauthorised use of electricity' (s.126) is the genus of which the theft acts in s.135(1) are species; theft is unauthorised use done dishonestly. A Section 126 assessment therefore has to follow in every case of unauthorised use, including theft — neither section excludes the other.

**HC-010 (IK/GH)** HC-DB (Kerala) settles

Under Section 126(6) 'twice the tariff' ordinarily embraces both fixed and energy charges, and higher-tariff misuse is assessed at twice the higher tariff; but where the sole irregularity is excess load in the same premises for the same purpose (no tariff change) and the energy is already metered and paid, the penalty is confined to twice the fixed charges, absent a need to upgrade the distribution system/voltage.

**HC-010 (IK/GH)** HC-DB (Kerala) affirms

Section 126 assessment is intention-neutral (no mens rea); the assessing officer's presence at inspection is not a mandatory precondition to initiating proceedings.

**HC-011 (IK/GH)** holding · s.126(1) · ratio para (analysis)

The condition precedent to a provisional assessment under Section 126(1) is a conclusion by the Assessing Officer that the person is indulging in unauthorised use; that satisfaction cannot rest on the officer's mere 'vagaries' without a fair opportunity of hearing in defence.

**HC-018 (IK/GH)** HC-SB (Orissa) affirms

A Section 126 inspection alleging unauthorised use should be conducted in the consumer's presence; and the Section 126(5) 12-month cap applies only where the period of unauthorised use is unascertainable.

**SC-003 (IK/GH)** holding · s.126(1) · ratio para 12

The authorities are empowered to make a provisional and final assessment under Section 126(1) even in cases where electricity is unauthorisedly used by way of theft.

**HC-014 (IK/GH)** HC-SB (Bombay, Nagpur Bench) applies

Consuming electricity beyond the sanctioned contract demand, resulting in a change of tariff category, is unauthorised use under Explanation (b)(iv) to Section 126 (Seetaram Rice Mill); the assessment follows Sections 126(3)-(6), and prior payment of a contract-demand penalty is no bar to it.

**SC-006 (IK/GH)** holding · Consumer Protection Act s.2(1)(g) · ratio para 21

Raising a short-assessment demand to correct the licensee's own wrong multiply-factor is not a 'deficiency in service' where the consumer does not dispute the short-billing; it is 'escaped assessment', so the consumer fora cannot interfere.

**HC-024 (IK/GH)** holding · s.126(2) · ratio para 24

The provisional assessment must be supplied to the consumer under Section 126(2); in the absence of such service there should be no demand, because a statutory power must be exercised only in the manner prescribed and not otherwise.

**HC-024 (IK/GH)** holding · s.126 · ratio para 25

A decision under Section 126 must be taken strictly in accordance with the statutory provision — when a statute provides that a thing be done in a particular manner, it must be done in that manner and not in any other.

**HC-025 (IK/GH)** holding · s.126 · ratio para 82

The assessing officer is a State Government appointee (whether of the Government or the licensee) and so has an independent character, not functioning merely as an employee of the licensee — hence no unbridled power and no basis to strike down the Section.

## ▼ burden-proof — 6 cases · lead **SC-003** (SC)

**line of authority:** **HC-008 (IK/GH)** HC-2006 → **HC-020 (IK/GH)** HC-2011 → **HC-019 (IK/GH)** HC-2013 → **SC-003 (IK/GH)** SC-2019 → **HC-017 (IK/GH)** HC-2022 → **HC-022 (IK/GH)** HC-2022

**HC-008 (IK/GH)** HC-SB (Delhi) settles

Corroboration of suspected unauthorised use / DAE by the consumer's consumption pattern (Reg. 26(ii)) is a precondition to the exercise of the assessing officer's jurisdiction; if consumption exceeds the prescribed threshold, no case can be booked.

**HC-020 (IK/GH)** holding · s.126 / Reg. 8.1 · ratio para 183

The assessing officer has no jurisdiction to make a theft assessment unless he first establishes a case of theft against the person (para 8.1(b)(iv)); merely issuing a provisional assessment order does not establish theft.

**HC-020 (IK/GH)** holding · s.126 · ratio para 195

Theft of electrical energy cannot be made out on mere presumption; it has to be established as required by para 8.1(b)(iv) of the Code.

**HC-019 (IK/GH)** holding · s.135 / Reg. 15.8 · ratio para 23

A missing/tampered seal or broken glass window is not, by itself, evidence of theft unless corroborated by the consumer's consumption pattern and other available evidence — this is the safeguard for suspected-theft cases (Clause 15.8(x)-(xv)).

**SC-003 (IK/GH)** holding · s.126 / s.135 · ratio para 14

To prove theft in a criminal proceeding, the case must be proved beyond reasonable doubt with mens rea established; such strict proof is not necessary for assessing liability under Section 126(1).

**HC-017 (IK/GH)** holding · s.126 · ratio para 24

A Section 126 assessment is a civil enquiry to be decided on the standard of preponderance of probability, whereas Section 135 theft requires proof beyond reasonable doubt with mens rea; the yardsticks are distinct.

**HC-022 (IK/GH)** holding · s.126 / s.135 · ratio para 19

Sections 126 and 135 operate in separate fields and parallel proceedings may run; Section 126 is civil (preponderance of probability), Section 135 is criminal (beyond reasonable doubt) — the standards of proof differ.

**HC-022 (IK/GH)** holding · s.126 / s.135 · ratio para 27

Where a tampered/bypassed meter is the ONLY allegation and it founds both the Section 135 prosecution and the Section 126 assessment (self-same allegation), an acquittal scot-free in the criminal case means the consumer cannot be indicted for the same charge even on a preponderance of probability.

► **compounding-152** — 3 cases · lead **HC-029 (HC)**

▼ **jurisdiction-145-154** — 17 cases · lead **SC-002 (SC)**

**line of authority:** **SC-008 (IK/GH)** SC·2007 → **HC-006 (IK/GH)** HC·2008 → **SC-002 (IK/GH)** SC·2011 → **HC-019 (IK/GH)** HC·2013 → **SC-001 (IK/GH)** SC·2013 → **HC-016 (IK/GH)** HC·2013 → **SC-007 (IK/GH)** SC·2014 → **HC-003 (IK/GH)** HC·2014 → **HC-029 (IK/GH)** HC·2014 → **HC-009 (IK/GH)** HC·2016 → **HC-023 (IK/GH)** HC·2018 → **SC-003 (IK/GH)** SC·2019 → **HC-027 (IK/GH)** HC·2019 → **SC-006 (IK/GH)** SC·2021 → **HC-017 (IK/GH)** HC·2022 → **HC-022 (IK/GH)** HC·2022 → **SC-005 (IK/GH)** SC·2023

**SC-008 (IK/GH)** SC-binding (on the CPA 'service' point); the Section 145 bar recorded, not finally adjudicated explains

Electricity supply is a 'service' under the Consumer Protection Act, but assessment disputes under Section 126 engage the Section 145 civil-court bar and the complete-code character of the 2003 Act; whether the consumer fora's jurisdiction extends to such technical/assessment disputes is left open and remitted.

**HC-006 (IK/GH)** HC-DB-binding (Delhi) settles-explains

In an electricity-theft case, the civil court's jurisdiction to entertain a suit challenging the theft bill / civil liability is impliedly ousted by Sections 153–154 (Special Court), even where no criminal complaint is filed; Section 145's express bar is confined to Section 126/127 assessment matters. The plaint was rightly rejected, though for different reasons than the Single Judge gave.

**SC-002 (IK/GH)** holding · s.126(3) · ratio para 58 (conclusion 5)

The High Court should normally decline to interfere under Article 226 with a final assessment; it may examine a jurisdictional challenge but must not travel into the assessing officer's exclusive domain of assessment and fact-finding.

**HC-019 (IK/GH)** holding · s.127 · ratio para 27

The Section 127 appeal lies only against a Section 126 order, not against a Section 135(1A)/Clause 15.8 theft assessment; the latter is examinable by the Special Court under Section 154(5)/(6).

**HC-019 (IK/GH)** holding · s.154(5)/(6) · ratio para 35

The remedy against a final theft assessment is before the Special Court under Section 154(5)/(6), which determines the civil liability; the writ court will not interfere.

**SC-001 (IK/GH)** SC-binding settles-split

A consumer complaint challenging a Section 126 assessment or any Sections 135–140 action is not maintainable before a Consumer Forum; the statutory remedies (Section 127 appeal; Special Court under Section 153) are exclusive of the consumer route.

**HC-016 (IK/GH)** HC-SB (Rajasthan) affirms

Section 145 excludes the civil court's jurisdiction over matters an assessing officer (Section 126) or appellate authority (Section 127) is empowered to determine; a court entertaining an unauthorised-abstraction suit must decide that jurisdictional bar first, and the licensee may raise it as respondent without a cross-appeal.

**SC-007 (IK/GH)** holding · s.135 · ratio para 23

Theft of electricity under Section 135 (punishable up to three years) is a cognizable offence; the CrPC therefore applies and it is the duty of the police to register an FIR and investigate.

**SC-007 (IK/GH)** holding · s.151 · ratio para 23

Section 151 enables authorised persons to file a written complaint before the Court (on which cognizance may be taken straightway), but it does not exclude the other avenue of a police FIR/investigation; the Electricity Act is not a complete machinery for how offences are dealt with, so the CrPC governs.

**SC-007 (IK/GH)** holding · s.151 · ratio para 17

The amendment (proviso) to Section 151 permitting cognizance on a police report is clarificatory in nature and applies to pending matters (retrospective); notwithstanding Section 151, an FIR could be filed with the police even under the unamended provision.

**SC-007 (IK/GH)** holding · s.135 / s.151 · ratio para 25

The contrary High Court view (complaint-only route) does not lay down correct law; the police-FIR-competent view is approved — resolving the split.

**HC-003 (IK/GH)** holding · s.154(5),(6) · ratio reasoning on issues 1–2

The Special Court's power under Section 154(5) to determine civil liability for theft does not preclude a Section 126 assessment; the amount 'deposited' referred to in Section 154(6) is the amount assessed under Section 126, there being no other provision for such a deposit.

**HC-029 (IK/GH)** holding · s.154(5) · ratio para 25

Civil liability under Section 154(5) is defined (Explanation) as loss 'due to the commission of an offence', so its determination must necessarily be preceded by a positive determination of the commission of the offence.

**HC-029 (IK/GH)** holding · s.152 / s.154(5) · ratio para 25

After a deemed acquittal by compounding under Section 152(3), the Special Court cannot determine civil liability under Section 154(5); there is no different consequence between an acquittal after full trial and a deemed acquittal by compounding.

**HC-029 (IK/GH)** holding · s.154 · ratio para 26

The Special Court combines both criminal and civil jurisdictions, so the view that a criminal court cannot determine civil liability is incorrect; but its conclusion that no civil liability can be determined after a compounding-acquittal is correct.

**HC-009 (IK/GH)** holding · s.126 / s.154(5) · ratio para (analysis)

Section 126 cannot be applied to assess the amount to be charged for theft of electricity; the civil liability for theft is measured under the Section 154(5) formula (twice the tariff for the twelve months preceding detection, or the exact period of theft if determined, whichever is less), subject to final adjudication by the Special Court.

**HC-023 (IK/GH)** holding · s.154(6) · ratio para 6

The amount 'deposited by the consumer' in Section 154(6) is the amount deposited under Section 126 (there being no other deposit provision for theft), so the Section 154(5) Special Court does not oust the Section 126 assessment; the argument that only the Special Court may assess is rejected.

**SC-003 (IK/GH)** holding · s.126 / s.154(5) · ratio para 14

The Section 126(1) assessment power and the Section 154(5) Special Court power to determine civil liability are not parallel to each other; the High Court erred in holding that both proceedings cannot operate parallelly.

**SC-003 (IK/GH)** holding · s.126 / s.135 / s.154(5) · ratio para 14

Where there is no theft (only unauthorised use), no Section 135 complaint lies and the loss is assessed under Section 126(1); where the unauthorised use amounts to theft, a Section 126(1) assessment AND a Section 135 complaint may both proceed, with the Special Court determining civil liability under Section 154(5) and any excess deposit refunded.

**SC-003 (IK/GH)** holding · s.154(5) · ratio para 12

Merely because the Special Court is empowered to determine civil liability under Section 154(5) where a complaint is lodged, it cannot be said that the authorities have no power to make a Section 126 assessment.

**HC-027 (IK/GH)** holding · s.154(6) · ratio para 23

The 'amount deposited by the consumer' in Section 154(6) is the amount deposited under Section 126 — there being no other deposit provision for theft — so Section 126 assessment and the Special Court's Section 154(5) determination coexist.

**SC-006 (IK/GH)** holding · Consumer Protection Act s.2(1)(g) · ratio para 21

Raising a short-assessment demand to correct the licensee's own wrong multiply-factor is not a 'deficiency in service' where the consumer does not dispute the short-billing; it is 'escaped assessment', so the consumer fora cannot interfere.

**SC-006 (IK/GH)** holding · Consumer Protection Act · ratio para 22

A consumer forum must, at the threshold, find whether there was any deficiency in service before it can test the licensee's recovery against Section 56.

**HC-017 (IK/GH)** holding · s.145 · ratio para 33

Section 145 bars civil-court interference in respect of assessments under Sections 126 and 127; a Section 135 FIR instead leads to a Section 154 Special Court criminal action, with civil liability under Section 154(5) independent of and subject to the Section 126 deposit (Section 154(6)).

**HC-022 (IK/GH)** holding · s.154(6) · ratio para 36

The Explanation to Section 154(6) ('civil liability') refers to the liability determined by the Special Court under Section 154(5) for theft, not to the amount raised as a provisional assessment under Section 126.

**SC-005 (IK/GH)** SC-binding (3-Judge) settles

Electricity arrears of a previous owner/occupier are recoverable from a transferee/auction-purchaser as a precondition to supply where a statutory Condition of Supply / Supply Code so provides; the Section 43 duty to supply is not absolute, the Sections 50/181 (and 1948 Act Section 49) powers can create a statutory charge on the premises, and the suit remedy is independent of the Section 56 disconnection remedy.

#### ▼ limitation-56 — 4 cases · lead **SC-004 (SC)** **HC SPLIT**

**line of authority:** **HC-003 (IK/GH)** HC-2014 → **SC-004 (IK/GH)** SC-2020 → **SC-006 (IK/GH)** SC-2021 → **SC-005 (IK/GH)** SC-2023

**HC-003 (IK/GH)** HC-DB-binding (Allahabad) affirms

For Section 56(2), a Section 126 electricity due becomes 'first due' only on the making of the final assessment; the two-year recovery bar runs from that date, not from detection or consumption.

**SC-004 (IK/GH)** SC-binding settles

Charges become 'first due' under Section 56(2) only on issuance of the bill; the Section 56(1) disconnection right is subject to a two-year limitation from that date; beyond two years the licensee may raise a supplementary demand and pursue other recovery modes (limitation for a suit on a mistake running from discovery under Section 17(1)(c) Limitation Act) but cannot disconnect supply.

**SC-006 (IK/GH)** SC-binding (2-Judge; distinguishes the 3-Judge Rahamatullah Khan on facts) explains

Section 56(2) bars both recovery and disconnection (its disconnection bar being an exception to the ordinary law of limitation), but the bar is keyed to a consumer's neglect to pay a 'sum due'; a licensee's correction of its own short-billing mistake is escaped assessment (not deficiency in service and not a consumer's default), and limitation runs only from when a bill/demand is raised.

**SC-005 (IK/GH)** holding · s.56 · ratio para 328(h)

The power to initiate recovery proceedings by filing a suit against a defaulting consumer is independent of the power to disconnect supply as a means of recovery under Section 56.

#### ▼ mensrea-135 — 16 cases · lead **SC-002 (SC)**

**line of authority:** **HC-020 (IK/GH)** HC-2011 → **SC-002 (IK/GH)** SC-2011 → **HC-019 (IK/GH)** HC-2013 → **SC-001 (IK/GH)** SC-2013 → **SC-007 (IK/GH)** SC-2014 → **HC-009 (IK/GH)** HC-2016 → **HC-010 (IK/GH)** HC-2017 → **HC-026 (IK/GH)** HC-2018 → **HC-023 (IK/GH)** HC-2018 → **SC-003 (IK/GH)** SC-2019 → **HC-027 (IK/GH)** HC-2019 → **HC-014 (IK/GH)** HC-2020 → **HC-017 (IK/GH)** HC-2022 → **HC-022 (IK/GH)** HC-2022 → **HC-024 (IK/GH)** HC-2022 → **HC-025 (IK/GH)** HC-2023

**HC-020 (IK/GH)** holding · s.126 / s.135 · explanatory para 72

Section 126 assessment may be made even on inspection of records where a person is found in unauthorised use, without attracting Section 135, because Section 135 contemplates a positive act interfering with the recording of electricity supplied.

**SC-002 (IK/GH)** holding · s.126 / s.135 · ratio para 16

Section 135 theft falls within criminal jurisprudence and mens rea is a relevant factor; Section 126 does not speak of any criminal intent and is primarily a civil remedy without elements traceable to mens rea.

**SC-002 (IK/GH)** holding · s.126 · ratio para 17

'Unauthorised use of electricity' under Section 126 deals with cases of unauthorised use even in the absence of intention — distinct from dishonest abstraction under Section 135.

**HC-019 (IK/GH)** holding · s.126 / s.135 · ratio para 25

Sections 126 and 135 sit in different Parts (XII vs XIV), cover different fields and prescribe different procedures; theft involves mens rea, which is not necessary for unauthorised use under Section 126.

**SC-001 (IK/GH)** holding · s.135 · ratio para 46

Offences under Sections 135–140 (theft and allied acts) are triable only by a Special Court constituted under Section 153; a Consumer Forum has no jurisdiction over any action taken under Sections 135–140.

**SC-007 (IK/GH)** SC-binding settles-split

Theft of electricity under Section 135 is a cognizable offence governed by the CrPC; the police may register an FIR, investigate and file a Section 173 report on which the Court takes cognizance, and the Section 151 complaint route does not exclude this — the 2007 proviso to Section 151 being clarificatory and retrospective.

**HC-009 (IK/GH)** holding · s.135 · ratio para (analysis)

A show-cause notice / opportunity of hearing is required only where theft is suspected (broken/tampered seals, no evidence at site — per Circular 54/2007); where the theft is 'writ large' (here a dead-stop meter with a soldered wire after breaking the counter lock), no opportunity of hearing need be given before proceeding.

**HC-010 (IK/GH)** holding · s.126 · ratio para 31(ii)

'Unauthorised use of electricity' under Section 126 covers cases of unauthorised use even without intention; the consumer's intention is not the foundation for an assessment order under Section 126 (mens rea is a Section 135 concept).

**HC-026 (IK/GH)** holding · s.126 / s.135 · explanatory para 22 (adopting Fiem Industries, para 58)

Section 135 theft falls within criminal jurisprudence and mens rea is the relevant factor; Section 126 (read with the Supply Code) does not speak of criminal intent, and the assessment under it is appealable under Section 127, whereas a Section 135 assessment (Reg. 23-AA) has no statutory appeal.

**HC-023 (IK/GH)** holding · s.126 / s.135 · ratio para 9

A Section 135 criminal proceeding has no bearing on a Section 126 proceeding; even an acquittal in the criminal case for a Section 135 offence does not exonerate the consumer from Section 126 civil liability.

**HC-023 (IK/GH)** holding · s.135 · explanatory para 9

On the facts, the acquittal was not a clean acquittal but a benefit-of-doubt acquittal on technicality (delayed seizure, non-production of dump copy), reinforcing that it does not undo the Section 126 civil liability.

**SC-003 (IK/GH)** holding · s.126 / s.135 · ratio para 14

To prove theft in a criminal proceeding, the case must be proved beyond reasonable doubt with mens rea established; such strict proof is not necessary for assessing liability under Section 126(1).

**HC-027 (IK/GH)** holding · s.126 / s.135 · ratio para 19

Unauthorised use of electricity (Explanation (b) to Section 126) is the genus of which the Section 135(1) acts are species; theft is unauthorised use done dishonestly, so a Section 126 assessment must follow whenever there is unauthorised use.

**HC-014 (IK/GH)** holding · s.126 · ratio para 16

Following Seetaram Rice Mill (para 35), intention is not the foundation for invoking Section 126; all that need be ascertained is whether the consumer exceeded the contract load resulting in usage beyond it.

**HC-017 (IK/GH)** holding · s.126 / s.135 · ratio para 34

An acquittal on a Section 135 theft charge (tested on proof beyond reasonable doubt) does not ipso facto exonerate the consumer from civil liability under Section 126 (tested on the more liberal preponderance of probability).

**HC-022 (IK/GH)** holding · s.126 / s.135 · ratio para 27

Where a tampered/bypassed meter is the ONLY allegation and it founds both the Section 135 prosecution and the Section 126 assessment (self-same allegation), an acquittal scot-free in the criminal case means the consumer cannot be indicted for the same charge even on a preponderance of probability.

**HC-024 (IK/GH)** holding · s.126 / s.135 · ratio para 19

The contention that an acquittal in the Section 135 criminal case extinguishes Section 126 liability is not acceptable — a Section 135 proceeding has no bearing on a Section 126 proceeding (following Orion Metal and Seetaram Rice Mill).

**HC-025 (IK/GH)** holding · s.126 / s.135 · ratio para 89

A Section 126 finding does not indict a person of theft (a criminal charge); the assessing officer merely calculates the licensee's loss, and whether theft is established is left to the Special Court's full criminal trial — so no violation of Articles 19/21.

## ▼ natural-justice — 14 cases · lead **HC-003 (HC)**

**line of authority:** **HC-013 (IK/GH)** HC·2002 → **HC-021 (IK/GH)** HC·2005 → **HC-008 (IK/GH)** HC·2006 → **HC-020 (IK/GH)** HC·2011 → **HC-019 (IK/GH)** HC·2013 → **HC-003 (IK/GH)** HC·2014 → **HC-009 (IK/GH)** HC·2016 → **HC-010 (IK/GH)** HC·2017 → **HC-011 (IK/GH)** HC·2017 → **HC-018 (IK/GH)** HC·2017 → **HC-026 (IK/GH)** HC·2018 → **HC-022 (IK/GH)** HC·2022 → **HC-024 (IK/GH)** HC·2022 → **HC-025 (IK/GH)** HC·2023

**HC-013 (IK/GH)** HC-DB (Patna) settles

Under a statutory tariff clause, disconnection of supply on detecting excess-load/theft may be effected without prior notice (natural justice yielding to the urgency of protecting the Board's property), but the ensuing assessment of the value of energy and compensation must be made only after a hearing.

**HC-021 (IK/GH)** holding · s.126(1) · ratio para 18

Section 126(1) requires the assessing officer to provisionally assess 'to the best of his judgment' on his own personal observation of the extent of unauthorised use; this quasi-judicial function cannot be fettered by a superior's guideline/office order — an assessment dictated by such a direction is the direction-giver's judgment, not the officer's, and is illegal.

**HC-008 (IK/GH)** HC-SB (Delhi) applies

In a Section 126 unauthorised-use / DAE proceeding the show-cause notice must precisely disclose the grounds — including the consumption-pattern basis relied on — and the licensee must grant a real hearing; a demand founded on seal/glass irregularities without that disclosure or corroboration is set aside and remitted.

**HC-020 (IK/GH)** holding · s.126(3) / Reg. 8.1 · ratio para 183

The law requires an opportunity of oral hearing to the consumer before final assessment; none was given here (no date was communicated for the consumer to answer the charges in person).

**HC-019 (IK/GH)** holding · s.135 / Reg. 15.8 · ratio para 23

A missing/tampered seal or broken glass window is not, by itself, evidence of theft unless corroborated by the consumer's consumption pattern and other available evidence — this is the safeguard for suspected-theft cases (Clause 15.8(x)-(xv)).

**HC-003 (IK/GH)** HC-DB-binding (Allahabad) applies

A final assessment under Section 126 passed beyond the 30-day window in Section 126(3) — here two years after the provisional notice and without a fresh hearing — is void for breach of natural justice and is set aside with a direction to reassess after hearing objections.

**HC-009 (IK/GH)** HC-SB (Punjab & Haryana) settles

A pre-assessment hearing in a theft case is required only where theft is merely suspected; where theft is 'writ large' on the checking report, no opportunity of hearing need be afforded before the licensee proceeds.

**HC-010 (IK/GH)** holding · s.126(1) · ratio para 31(i)

The physical presence of the assessing officer at the time of inspection and detection of unauthorised use is not a mandatory precondition for initiating assessment proceedings under Section 126(1).

**HC-011** (IK/GH) HC-DB (Allahabad) affirms

A Section 126 assessment is subject to natural justice: the provisional assessment presupposes a lawful conclusion of unauthorised use, and a final assessment (or any coerced deposit) is invalid unless the consumer's objections are considered and a personal hearing given, per Section 126(3) and Clause 8.1 of the 2005 Supply Code.

**HC-018** (IK/GH) holding · s.126(1) · ratio para 17

An inspection alleging unauthorised use under Section 126 should be conducted in the presence of the consumer (a signatory to the inspection report); the licensee's failure to show the night inspection was in the consumer's presence undermined its case.

**HC-026** (IK/GH) holding · s.127 · ratio para 23

An appellate order rejecting a Section 127 appeal as not maintainable, passed without affording any opportunity of hearing, warrants interference and is quashed and remitted.

**HC-022** (IK/GH) holding · s.126(3) · ratio para 28

It is the incumbent duty of the licensee to pass a final order of assessment within 30 days of service of the provisional assessment, even if the consumer files no objection.

**HC-024** (IK/GH) HC-DB (Jharkhand) settles

The Section 126(2)/(3) procedure — service of the provisional assessment, opportunity to object, and a final assessment — is mandatory (manner-prescribed rule); a demand raised without it is set aside and remitted.

**HC-025** (IK/GH) holding · s.126(1) · ratio para 80

No hearing is required before a provisional assessment under Section 126(1) (which is not conclusive); the right of hearing and to file objections is given before the final order, and requiring a hearing before the provisional assessment would defeat the summary, expeditious timeline.

## ▼ provisional-final — 11 cases · lead **SC-002** (SC)

**line of authority:** **HC-013** (IK/GH) HC-2002 → **SC-002** (IK/GH) SC-2011 → **HC-019** (IK/GH) HC-2013 → **HC-003** (IK/GH) HC-2014 → **HC-011** (IK/GH) HC-2017 → **HC-023** (IK/GH) HC-2018 → **HC-027** (IK/GH) HC-2019 → **HC-017** (IK/GH) HC-2022 → **HC-022** (IK/GH) HC-2022 → **HC-024** (IK/GH) HC-2022 → **HC-025** (IK/GH) HC-2023

**HC-013** (IK/GH) holding · Tariff Clause 16.9 · ratio para 27

Although natural justice is excluded at the disconnection stage, the determination of the value of energy consumed and the assessment of compensation must be made after giving the affected person an opportunity of hearing — that requirement is read into the clause even though it is silent.

**SC-002** (IK/GH) holding · s.126 / s.127 · ratio para 58 (conclusion 4)

Sections 126 and 127 read together constitute a complete code; only a final order of assessment under Section 126(3) is appealable under Section 127, and a notice-cum-provisional assessment under Section 126(2) is not appealable.

**HC-019** (IK/GH) holding · Reg. 15.8 · ratio para 30

The suspected-theft safeguards in Clause 15.8(x)-(xv) (continued supply, provisional assessment, show-cause, 75%-consumption drop) have no application to a clear theft case, which is governed by Clause 15.8(i)-(ix).

**HC-019** (IK/GH) holding · s.126 · ratio para 29

Labelling a theft demand as a 'Section 126 provisional assessment' does not convert a theft proceeding into a Section 126 assessment where, on the date of inspection, it was treated as theft (FIR lodged) and not even as suspected theft.

**HC-003** (IK/GH) holding · s.126(3) · ratio reasoning on issue 4

A final assessment must be passed within thirty days of the provisional order under Section 126(3); a final order passed about two years later, without a fresh opportunity of hearing, violates natural justice and cannot be sustained.

**HC-011** (IK/GH) holding · s.126(3) · ratio para (analysis)

A final assessment made without considering the consumer's objections and without a personal hearing (as required by Section 126(3) and Clause 8.1(b)(iii) of the 2005 Code) is de hors the statutory provision and cannot stand.

**HC-011** (IK/GH) holding · s.126 · ratio para (analysis)

Absent a lawful final assessment made after considering objections and hearing, the consumer cannot be compelled to deposit the provisional amount.

**HC-023** (IK/GH) holding · s.127 · ratio para 9

Where no Section 127 appeal is filed against the final Section 126 assessment, it attains finality and the consumer is liable to pay the assessed amount.

**HC-027** (IK/GH) holding · Reg. 8.1 (UP Code) · ratio para 28

The U.P. Electricity Supply Code, 2005 (Clause 8.1) requires a provisional assessment bill and final assessment even in Section 135 theft cases, confirming that assessment for theft is made under Section 126.

**HC-017** (IK/GH) holding · s.127 · ratio para 36

A consumer who bypasses the Section 127 appeal (which requires a 50% pre-deposit) cannot obtain from the writ court, indirectly, the restoration he could not get from the appellate forum; there is no unqualified restoration without complying with the final assessment.

**HC-022** (IK/GH) HC-SB (Calcutta) settles

The licensee has a duty to pass a final Section 126 assessment within 30 days of serving the provisional order (even absent objection); failing that, the provisional order spends its force after 30 days and any amount paid on it is refundable.

**HC-024** (IK/GH) holding · s.126(2) · ratio para 24

The provisional assessment must be supplied to the consumer under Section 126(2); in the absence of such service there should be no demand, because a statutory power must be exercised only in the manner prescribed and not otherwise.

**HC-024** (IK/GH) holding · s.126(3) · ratio para 26

A demand issued without considering the consumer's objection and without making a final assessment requires interference and must be remitted for a fresh decision strictly per Section 126.

**HC-025** (IK/GH) holding · s.126(1) · ratio para 80

No hearing is required before a provisional assessment under Section 126(1) (which is not conclusive); the right of hearing and to file objections is given before the final order, and requiring a hearing before the provisional assessment would defeat the summary, expeditious timeline.

### 3 · Citation backbone — authorities the corpus repeatedly rests on (≥2 records)

| freq | authority                                                                                                                                                   | treatment                                           | cited by                                                                                                                                                                                                                                                                                                                                                                                   |
|------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 15×  | <b>Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill</b><br>(2012) 2 SCC 108 · Supreme Court (3-Judge) | {'followed': 10, 'referred': 4, 'distinguished': 1} | HC-019 (IK/GH) followed, HC-016 (IK/GH) referred, HC-003 (IK/GH) distinguished, HC-009 (IK/GH) followed, HC-010 (IK/GH) followed, HC-018 (IK/GH) followed, HC-026 (IK/GH) referred, HC-023 (IK/GH) followed, SC-003 (IK/GH) followed, HC-014 (IK/GH) followed, HC-028 (IK/GH) referred, HC-017 (IK/GH) followed, HC-022 (IK/GH) referred, HC-024 (IK/GH) followed, HC-025 (IK/GH) followed |
| 3×   | <b>Ashok Kumar v. State of U.P.</b><br>2008 (6) ADJ 669 · Allahabad High Court (DB)                                                                         | {'followed': 3}                                     | HC-003 (IK/GH) followed, HC-011 (IK/GH) followed, HC-027 (IK/GH) followed                                                                                                                                                                                                                                                                                                                  |
| 3×   | <b>WBSEDCL v. Orion Metal Pvt. Ltd.</b><br>(2020) 18 SCC 588 · Supreme Court                                                                                | {'followed': 3}                                     | HC-017 (IK/GH) followed, HC-022 (IK/GH) followed, HC-024 (IK/GH) followed                                                                                                                                                                                                                                                                                                                  |
| 2×   | <b>M/s Paliwal Alloys Pvt. Ltd. v. State of U.P.</b><br>2009 (7) ADJ 455 · Allahabad High Court (DB)                                                        | {'followed': 2}                                     | HC-003 (IK/GH) followed, HC-027 (IK/GH) followed                                                                                                                                                                                                                                                                                                                                           |

| freq | authority                                                                                                                 | treatment                      | cited by                                         |
|------|---------------------------------------------------------------------------------------------------------------------------|--------------------------------|--------------------------------------------------|
| 2×   | <b>M/s Radha Krishna Cold Storage v. State of U.P.</b><br>WP No. 19574 of 2008 (Allahabad DB) · Allahabad High Court (DB) | {'referred': 1, 'followed': 1} | HC-003 (IK/GH) referred, HC-027 (IK/GH) followed |
| 2×   | <b>Tinsukhia Electricity Supply Co. Ltd. v. State of Assam</b><br>(1989) 3 SCC 709 · Supreme Court (Constitution Bench)   | {'followed': 2}                | HC-003 (IK/GH) followed, HC-023 (IK/GH) followed |
| 2×   | <b>Sandeep Kesarwani v. State of U.P.</b><br>MANU/UP/1049/2014 · Allahabad High Court (DB)                                | {'followed': 2}                | HC-028 (IK/GH) followed, HC-022 (IK/GH) followed |